In The Matter of Al-mira Davis

22 messages

AshLe' Penn <ashlepenn.ap3@gmail.com> Mon, Sep 8, 2025 at 1:44 PM
To: juvenileweb@washingtoncountyor.gov

To The Juvenile Court,

I am writing to confirm the substance of our recent telephone conversation and to formally submit a filing in the above-referenced juvenile case involving my daughter.

During our call, I was informed that I am not permitted to file documents in this case and that filings must be made in person (both of which could not simultaneously be valid). I explained that I am unable to attend in person at this time. Moreover, I informed the clerk, before being prevented access to the courts through her ending the conversation, that no proper summons or signed court protective order has been issued or served on me. I attempted to inform her that I am appearing specially through my filings.

In light of this, I am submitting herewith the following filing for your review and inclusion in the case file:

Objection to Referee Jurisdiction

Motion to Participate by Written Filing

Objection to Continued Custody

Demand for Immediate Placement with Natural Mother

Under Oregon law, "any person may file a petition in the juvenile court alleging that a child named therein is within the jurisdiction of the court" (ORS 419B.809(1)). This statute establishes that the court must accept filings from natural parents regardless of physical appearance and that participation through timely written filings is permitted. Denying this right or requiring in-person filing only conflicts with the statutory right to access the court and be heard in juvenile proceedings.

Please treat this email and the attached filing as my formal special appearance and request that the Court docket and consider the matters raised herein, notwithstanding any informal restrictions communicated by the clerk's office.

Kindly confirm receipt of this filing at your earliest convenience. I reserve all rights to pursue any further necessary legal action should my lawful right to file and participate be improperly denied.

Thank you for your attention to this important matter.

Respectfully,

AshLe' Penn

In the matter of almira davi.pdf
122K

AshLe' Penn <ashlepenn.ap3@gmail.com> Mon, Sep 8, 2025 at 1:47 PM
To: kat_sanchez@washingtoncountyor.gov

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In the matter of almira davi.pdf
122K

AshLe' Penn <ashlepenn.ap3@gmail.com> Mon, Sep 8, 2025 at 3:34 PM
To: Heather.KITTO@odhs.oregon.gov

Ms. Kitto,

I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing. I'm communicating this with you for the record.

We will be in touch.

Regards,
AahLe' Penn

---------- Forwarded message ---------
From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM

Subject: In The Matter of Al-mira Davis
To: <juvenileweb@washingtoncountyor.gov>

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In the matter of almira davi.pdf
122K

KITTO Heather <Heather.KITTO@odhs.oregon.gov> Mon, Sep 8, 2025 at 4:07 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>, CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>

Hello, I am including your current worker and supervisor so that you can work directly with them. I was the on call supervisor this weekend, but won't be involved with your case moving forward.

Sincerely,

Heather Kitto

ODHS CW Supervisor Beaverton

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Monday, September 8, 2025 3:34 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>
Subject: Fwd: In The Matter of Al-mira Davis

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[Quoted text hidden]

CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov> Mon, Sep 8, 2025 at 4:55 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>, AshLe' Penn <ashlepenn.ap3@gmail.com>, "imahoney@mpdlaw.com" <imahoney@mpdlaw.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ashle,

I am your assigned caseworker. I have been trying to contact you since the end of July. You were notified of court. You did not make yourself available to have any discussions with. All parents are required to show in person unless pre-approved from the judge. I am copying your attorney on this email. I am not an attorney, and she may be able to have a more in depth conversation regarding appearances and legal matters. I would like to schedule a time to discuss assessments I currently have open.

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

[Quoted text hidden]

Ireland Mahoney <imahoney@mpdlaw.com> Mon, Sep 8, 2025 at 5:24 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Hi Ashle',

I am the attorney who was assigned to represent you in this dependency matter. I'd love to chat when you get the chance, but before I do, you must fill out the paperwork to get a court appointed attorney. I can try to get the paperwork and send it over by email for you to sign or you can ask DHS to send you the CAA paperwork.

I hope to hear from you soon.

Ireland Mahoney
5037267000

From: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Sent: Monday, September 8, 2025 4:55:38 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>; AshLe' Penn <ashlepenn.ap3@gmail.com>; Ireland Mahoney <imahoney@mpdlaw.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>
[Quoted text hidden]

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Sep 9, 2025 at 6:44 AM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Cc: KITTO Heather <heather.kitto@odhs.oregon.gov>, "imahoney@mpdlaw.com" <imahoney@mpdlaw.com>, Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ms. Crafton,

Your email dated September 8, 2025, at 4:55 PM, states you have "been trying to contact me since the end of July" and that I "did not make myself available." Both assertions are false and misdirect blame for DHS's failures onto me. I received no communication of any kind—call, email, text, voicemail, letter, or visit—from you or your office prior to the events of this weekend. My phone and email have not changed, remain active, and have been used successfully by others, including DHS supervisor Heather Kitto and her colleagues, who reached me promptly during this same timeframe by simply making the effort to do so.

As you know, DHS Child Welfare Manual §4, "Initial Contact With the Family" (p. 262) requires all attempted contacts with children and parents to be documented in the case file, with date, time, method, and outcome. Consistent with your own agency rules, I hereby demand a written, itemized accounting of every alleged attempt to contact me since July 2025, consistent with your claim.

Your further assertion that "all parents are required to show in person unless pre-approved from the judge" is equally unsupported. The only document I received was a "Notice of Protective Custody" pamphlet, which is neither a summons nor a petition. It contained no directive for mandatory in-person appearance.

ORS 419B.838 requires proper service of summons or notice in dependency cases, and ORS 419B.848 makes proof of service a jurisdictional prerequisite. Importantly, ORS 419B.815 establishes that "A court may make an order establishing jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition," and mandates that a summons require personal appearance or written answer to the petition. Without proper service and proof in the record, the court lacked jurisdiction to proceed with the shelter hearing. The "Notice of Protective Custody" I received does not meet ORS 419B.815's statutory summons requirements as it lacked any petition or proper summons and omitted notification of personal appearance obligations.

I attempted to appear specially through a written filing to make such challenges and objections, but that filing was rejected by juvenile department staff, who initially told me I could not submit anything in the case and that, contrarily, filings could only be made in person. The juvenile code guarantees my right to participate and be heard. I was thereby denied access to the proceedings. The hearing likely proceeded in my absence, without jurisdiction, without proper notice or summons, and without my being informed of my daughter's location.

Finally, I must address the supervisor's message reporting that hospital staff felt I was "escalating" when I called seeking information. Those calls were made only because DHS gave me conflicting information as to whether my daughter was even at the hospital. Under those circumstances, my persistence was not "escalation" but the only means available to verify my daughter's location and safety. Attempts to recast a parent's urgent inquiries as misconduct are improper and retaliatory.

On these facts:

DHS has failed to comply with ORS 419B.838, ORS 419B.848, and ORS 419B.815;

DHS has not produced required documentation of contact attempts per its own Child Welfare Manual;

I was obstructed from filing and participating in violation of due process;

My child has been removed without lawful notice, jurisdiction, or disclosure of placement.

Accordingly, I demand:

A written, itemized accounting of all alleged contact attempts since July 2025;

Clarification of DHS's official notification and appearance practices;

Immediate disclosure of my daughter's placement and status;

Formal acknowledgment that I seek a rehearing and review due to these procedural defects and jurisdictional failures.

The removal report

The petition

Regards,
AshLe' Penn

[Quoted text hidden]

Kat Sanchez <Kat_Sanchez@washingtoncountyor.gov> Tue, Sep 9, 2025 at 1:03 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Good afternoon,

I am not sure what your email is in regards as it was sent blank.

Please let me know if you need help being connected to the appropriate staff within the juvenile department.

Thank you,

Kat

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CAUTION: This email originated from outside the County. Exercise caution when opening attachments or clicking links from unknown senders. Always follow the guidelines defined in the KnowBe4 training when opening email received from external sources. Contact the ITS Service Desk if you have any questions.

INFO: Washington County email address has changed from @co.washington.or.us to @washingtoncountyor.gov. Please update my contact information.

Kimberly A. Beck <Kimberly.A.Beck@ojd.state.or.us> Tue, Sep 9, 2025 at 3:09 PM
To: "ashlepenn.ap3@gmail.com" <ashlepenn.ap3@gmail.com>

Good afternoon, Ms. Penn,

Your personal appearance was required for the shelter hearing on September 8, 2025, and you failed to appear. Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements.

If you have any further concerns or wish to discuss your situation in more detail, you are welcome to contact our Trial Court Administrator, Richard Moellmer. He can be reached by phone at 503.846.8888 ext.70568 or by email richard.e.moellmer@ojd.state.or.us

Thank you,

Kimberly Beck

Juvenile Case Processing Clerk*
Juvenile Department Lead

Washington County Circuit Court

(503) 846-8888 ext. 70621
*Adoptions, Guardianships, Emancipations, Back-Up Courtroom Clerk for Judge Goldman

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From: JUVENILE Web <JUVENILEweb@washingtoncountyor.gov>
Sent: Tuesday, September 9, 2025 9:03 AM
To: WSH Juvenile Admin Staff <wsh.juvenile.admin.staff@ojd.state.or.us>
Subject: FW: [EXTERNAL] In The Matter of Al-mira Davis

WARNING: This email is from outside of the Oregon Judicial Department. If links or files in this email are unexpected, even if from an email address you trust, please call the sender on the phone and verify them before you click.

Forwarding on to you for possible assistance….

Thanx,

Lorena L.

x4453

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[Quoted text hidden]

CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov> Tue, Sep 9, 2025 at 5:00 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: "imahoney@mpdlaw.com" <imahoney@mpdlaw.com>, Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ms. Penn,

Thank you for your email. Some of your questions are regarding legal matters, please speak to your attorney regarding these.

I do need to meet with you regarding the three open calls I have and would like to schedule a time to meet with you to do that. I am available 12pm-5pm on Friday 9/12/2025, Tuesday 9/16/2025 9am-4pm, Wednesday 9/17/2025 8am-5pm or Friday 9/19/2025 9am-4pm. These times may very as things come up so please respond as soon as possible letting me know what day and time works for you.

Thank you

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

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[Quoted text hidden]

[Quoted text hidden]

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Monday, September 8, 2025 3:34 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>
Subject: Fwd: In The Matter of Al-mira Davis

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Ms. Kitto,

I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing. I'm communicating this with you for the record.

We will be in touch.

Regards,

AahLe' Penn

---------- Forwarded message ---------
From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
Subject: In The Matter of Al-mira Davis
To: <juvenileweb@washingtoncountyor.gov>

[Quoted text hidden]

Ireland Mahoney <imahoney@mpdlaw.com> Thu, Sep 11, 2025 at 9:09 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Hi AshLe',

I just noticed that I had a typo in my last message to yo. Please see the correct office number in my signature below.

I noticed you haven't filled out the court appointed paperwork yet, and I am not able to work on your case until you do. However, if you have any questions about how to do that, I would be happy to help you in any way I can.

I hope to talk soon.

Best,

Ireland Mahoney (she/her) | Attorney, Juvenile Unit

Metropolitan Public Defender

400 E. Main St., Suite 210

Hillsboro, OR 97123

Office: 503-726-7900

Legal Assistant Mollie McAdams: mmcadams@mpdlaw.com.

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AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, Sep 12, 2025 at 3:40 AM
To: Barry Washington <barrywashington.bw@gmail.com>

Ms. Beck,

I acknowledge receipt of your email dated September 9, 2025, asserting that my "personal appearance was required" at the September 8 shelter hearing and that my written filing did "not satisfy court requirements".

Under ORS 419B.838 and ORS 419B.848, jurisdiction in a juvenile dependency proceeding attaches only upon the issuance and lawful service of a summons together with the petition upon the parties. Even the savings clause of this chapter (ORS 419B.836) does not excuse absolute absence of service, only minor defects in service which do not act to violate the due process rights of the party against whom "summons was issued". The statute establishes that only parties who would have received the petition and therefore would have knowledge of the substance and pendency of the action, as is required, would or could be compelled to present in-person.

I have received neither a summons nor a petition providing me Constitutionally and legislatively sufficient notice, yet my daughter's whereabouts have been concealed and the state appears to have proceeded with a juvenile dependency shelter hearing that it had no authority to proceed with in the absence of proper, procedurally compliant and substantive interests observant requirements. It is ORS 419B.839 which grants the tribunal the authority to compel an in-person presence, but only if necessary, by stating: "Summons may be issued requiring the appearance of any person whose presence the court deems necessary."

Notwithstanding the fact that I was not afforded constitutionally sufficient or statutorily proper service of summons and petition, I am unable to find any requirement that I would have been aware of that mandated that only a physical in-person presence would suffice.

Although I may not have appeared in person - I did, however, make a special appearance to challenge the jurisdiction of the tribunal and exercise my parental rights but was denied the ability to do so - without being provided under what authority this requirement comes from. Despite that proper notice and service of summons was

never effectuated, I did attempt to appear, specially, by filing written objections challenging referee jurisdiction and objecting to the court's neglecting to ensure service was complete on the record.

Unfortunately, I was denied filing access, and thereby denied access to the court, by the juvenile clerk's office, which refused to docket my appearance by refusing to accept my filing and for which the clerk's office provided no lawful basis for prohibiting either remote or written filings in lieu of a personal appearance. In regard to the clerk's refusal to accept my filing, there is legislatively established authority supporting my position that the clerk of a court does not have the authority to deny a filing if it meets statutory requirements, as I'm confident the filing I submitted did just that.

Proceedings that move forward absent proof of service are void for lack of jurisdiction. See ORS 419B.848(3)(a) providing: "All papers requiring service, may be transmitted from any place by telegraph, facsimile or electronic mail."

Respectfully, your statement that my filings did not meet court requirements is legally unsustainable. Are you able to identify the specific defects in my filing making it unsatisfactory to be accepted and to carry out its purpose so that I might be able to correct the issue? Please don't construe this as a request for legal advice, it is not. Moreso, this is a request that I be provided with statutory authority supporting the assertion that my filings did not satisfy court requirements. Without being able to identify exactly why my filing did not "satisfy court requirements", I'd ask how my filing was determined insufficient to carry out its purpose? So, again, this is not a request for legal advice but rather a showing that public officials are acting in accordance with the law.

I believe that under ORS 419B.851, "The filing of any papers with the court must be made by filing them with the clerk of the court or the person exercising the duties of that office. The clerk or the person exercising the duties of that office shall indorse the time of day, day of the month, month and year upon the paper." So long as the filing contains: the name of the court; the title of the cause and the paper; The names of the parties; and since there is not one, the name of the attorney for the parties requesting filing should not have been required.

In observance of this statute, my filing absolutely satisfied court requirements and it would appear that a clerk's indorsement of such a filing is ministerial and not discretionary - requiring the acceptance of my filing notifying the court of my special appearance on the record. Overall, the court has proceeded in this matter lacking authority to do so. If you can provide clarity of under what authority, exactly, this matter is proceeding under - I would be grateful if you could provide it to me.

Further, I must address DHS's conduct in this matter. Initially, DHS contacted me and stated they were prepared to release Almira to me. When I sent my uncle to retrieve her (due to an outstanding warrant preventing my personal appearance), DHS refused this lawful exercise of my parental right to receive family assistance. Approximately 10 minutes later, DHS claimed they had received "new information" that Almira stated she would "kill herself" if returned to my home.

When I spoke with Almira directly about one hour later, she explicitly denied making any such statement and expressed her desire to come home. DHS immediately terminated this call and has prevented all subsequent contact between myself and my daughter. This appears to constitute fabrication of evidence to justify continued detention, followed by silencing of the witness who contradicted their claims.

DEMANDS FOR PRESERVATION OF DOCUMENTS/DOCUMENTATION

Accordingly, I now formally demand that the Juvenile Department provide:

1. Proof of service already occurred complete with the date, method/manner of service, sworn statement from the individual who served the documents as well as the location and time of service;
2. Clarification of what the court has now relied on to establish that jurisdiction has been properly acquired over me in the absence of service of summons or proof of service;
3. Documentation of the alleged "suicide threat" including the identity of the person who allegedly heard this statement, the exact time and circumstances, and any recordings or contemporaneous notes;
4. Justification for terminating my phone contact with Almira and preventing all subsequent communication;
5. Current location and placement information for Almira, which continues to be unlawfully concealed.

TORT CLAIM NOTICE

NOTICE OF CLAIM UNDER OREGON TORT CLAIMS ACT (ORS 30.275)

TO: Washington County and the State of Oregon

CLAIMANT: AshLe' Penn, Natural Mother of Almira Davis

DATE, TIME AND LOCATION:

- Initial violations: September 5, 2025 and ongoing
- Location: Washington County Circuit Court Juvenile Department

Washington County employees and other state actors have violated claimant's constitutional rights by:

1. Proceeding with court hearings without jurisdiction due to failure to serve summons and petition
2. Refusing to accept proper legal filings, denying access to courts
3. Relying on evidence presented in void proceedings to justify continued child detention
4. Violating procedural due process rights and substantive parental rights
5. Concealing child's location and placement information

(Note: Additional claims may be pursued against other state actors for related conduct outside the court's direct purview)

Rights of Action:

- Emotional distress from unlawful separation from minor child
- Loss of parental companionship and constitutional parent-child relationship
- Ongoing constitutional violations and denial of due process
- Economic losses related to legal proceedings and lost time
- punitive damages for deliberate constitutional violations

This notice is provided pursuant to ORS 30.275 as a prerequisite to filing civil action. This notice preserves all rights to seek additional damages as they become ascertainable.

RESERVATION OF RIGHTS

Additionally, despite repeated inquiries, I have not been informed where my daughter Almira is currently placed, nor have I received any documentation or order authorizing her removal or restricting my contact. This continued concealment raises grave due process concerns and interference with parental rights that is actionable under 42 U.S.C. § 1983.

I formally object to any reliance on alleged "failure to appear." I did not waive jurisdictional objections, and I expressly appeared specially by filing. Until proper summons and service are made, the court lacks authority to compel my physical appearance or proceed further.

Please ensure this response is entered into the record. I reserve all rights and objections.

Respectfully,

/s/AshLe' Penn

Natural Mother

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, Sep 12, 2025 at 3:51 AM
To: Barry Washington <barrywashington.bw@gmail.com>

Ms. Crafton,

Your response dated September 12, 2025, fails to address any of the substantive legal and procedural violations I raised in my previous correspondence. Your instruction to "speak to your attorney regarding these" is in appropriate deflection of your statutory obligations and does not excuse your agency's failures to comply with state law and your own policies.

OUTSTANDING DEMANDS REQUIRING IMMEDIATE RESPONSE

You have not responded to my specific demands, which I hereby reiterate:

1. **Written, itemized accounting of all alleged contact attempts since July 2025** - Your claim that you were "trying to contact me since the end of July" requires documentation per DHS Child Welfare Manual §4. Produce the records or retract the statement.
2. **Immediate disclosure of Almira's current placement and status** - Concealment of my daughter's location violates my fundamental parental rights and due process.
3. **The removal report and petition** - I am entitled to these documents under ORS 419B.838 and due process requirements.
4. **Clarification of your authority to proceed** - Given the jurisdictional void in the underlying court proceedings.

JURISDICTIONAL DEFECTS PRECLUDE ADMINISTRATIVE ACTION

Your request to meet regarding "three open calls" ignores fundamental legal problems with DHS's authority in this matter. Once DHS invoked court jurisdiction by filing proceedings, your agency shifted from administrative investigation to judicial process. That judicial process is void due to failure to serve summons and petition as required under ORS 419B.838, ORS 419B.815, and ORS 419B.848.

You cannot now retreat to administrative authority when the judicial proceedings have failed. DHS cannot use administrative investigation powers to justify or continue actions taken through void court proceedings. Any "open calls" must be addressed through proper legal process, not meetings designed to bypass jurisdictional requirements.

FABRICATED EVIDENCE AND WITNESS TAMPERING

I must address DHS's conduct regarding the alleged "suicide threat" that your agency used to reverse its initial determination that Almira should be released to me. As documented:

1. **Initial determination**: DHS contacted me stating they were prepared to release Almira to my care
2. **Fabricated reversal**: Approximately 10 minutes after I exercised my parental right to send family assistance (my uncle) to retrieve her, your supervisor claimed Almira had stated she would "kill herself" if returned to me
3. **Child's contradiction**: When I spoke with Almira directly about one hour later, she explicitly denied making any such statement and expressed her desire to come home
4. **Silencing the witness**: DHS immediately terminated our call and has prevented all subsequent contact between myself and my daughter

This sequence constitutes fabrication of evidence to justify continued detention, followed by deliberate prevention of communication that would contradict your agency's false claims. Such conduct violates due process, interferes with parental rights, and potentially constitutes criminal conduct under ORS 162.085 (Official Misconduct).

THIS IS NOT REFUSAL TO COOPERATE

Let me be unequivocally clear: I am not refusing to cooperate with lawful process. I am exercising my constitutional and statutory rights to due process, proper notice, and lawful procedure. My insistence that DHS comply with state law and your own policies is not "uncooperative" behavior - it is the exercise of fundamental rights that cannot be penalized.

Any characterization of my rights-assertion as "uncooperative" or any punitive response to my exercise of constitutional rights would constitute unlawful retaliation. Parents cannot be punished for demanding that government agencies follow the law.

CONDITIONS FOR COOPERATION

I will gladly cooperate with DHS when your agency:

1. **Follows state law** - Complies with ORS 419B.838, ORS 419B.815, and ORS 419B.848 regarding proper service and jurisdictional requirements
2. **Follows your own policies** - Documents contact attempts per Child Welfare Manual requirements and provides required disclosure
3. **Operates within legal authority** - Establishes proper jurisdiction before compelling participation
4. **Ceases fabricating evidence** - Acknowledges and corrects the false "suicide threat" claim
5. **Respects parental rights** - Allows communication with Almira and discloses her placement

LEGAL COMPLIANCE IS NOT OPTIONAL

Your agency's failures include:

- Proceeding without proper court jurisdiction
- Fabricating evidence to justify child detention
- Preventing parent-child communication to maintain fabricated narrative
- Refusing to provide required documentation
- Attempting to compel participation through void proceedings

These violations cannot be cured by scheduling meetings or deflecting to non-existent counsel. They require acknowledgment, correction, and compliance with law.

DEMAND FOR IMMEDIATE ACTION

I demand immediate response to all outstanding requests for documentation and information. Your continued non-response will be documented as evidence of deliberate violation of statutory duties and constitutional rights.

I reserve all rights and remedies under state and federal law, including but not limited to claims under 42 U.S.C. § 1983 for deprivation of rights under color of state law.

Respectfully,

/s/ AshLe' Penn

Natural Mother of Almira Davis

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Thu, Sep 18, 2025 at 12:15 PM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>

> s. Crafton,
>
> Please find attached my formal response to your September 9, 2025 message. This correspondence addresses critical procedural and jurisdictional matters that require your direct response as the assigned caseworker.
>
> The attached letter outlines specific statutory obligations, documentation requirements, and factual discrepancies that must be resolved before any further meetings can be scheduled. These inquiries concern DHS's own mandatory compliance duties under Oregon law and are not requests for legal advice.
>
> I expect your written response within ten (10) business days of receipt, addressing each numbered section and subsection. The questions posed require straightforward, factual answers based on DHS policies, Oregon statutes, and the specific record of this case.
>
> Regards
> AshLe' Penn

crafton.pdf
68K

CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov> Wed, Oct 1, 2025 at 10:40 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>, Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>

Dear Ms. Penn,

On September 8, 2025, the Oregon Department of Human Services – Child Welfare sought and was granted temporary custody of Al'Mira. You were informed of this hearing, however, did not attend. At this court proceeding, the court identified prospective counsel for you with the Metropolitan Public Defenders Office. In order for counsel to be appointed on your behalf, you must fill out the court appointed attorney paperwork. I have attached another copy for your review and submission to the court. These documents are required for the court to appoint your legal counsel in Al'Mira's case, and they must be submitted to the juvenile court.

Your options to submit paperwork is to print, complete, scan and email back to me so I can submit this OR, print, complete, and mail/hand deliver to the juvenile court.

If you privately retain counsel, please have them contact ODHS' attorney. Alternatively, you may also choose to represent yourself in these proceedings. If you choose to do so, you must inform our counsel.

If you have questions regarding the specifics of Al'Mira's legal case rather than the ongoing case planning and casework, ie: specific statutory questions, please contact legal counsel as I am unable to advise you.

As for the records request, that is to be directed to our records department, I have included their contact information below.

Washington County Juvenile Court

222 N. 1st Avenue

Hillsboro, Oregon 97124

(503) 846-4701

Metropolitan Public Defenders

400 E. Main St, Suite 210

Hillsboro, Oregon 97123

(503) 726-7900

Oregon Department of Justice – Child Advocacy and Protection (ODHS' Legal Counsel)

100 SW Market Street

Portland, Oregon 97201

(971) 673-1880

ODHS Public Records Unit

500 Summer St NE, E62

Salem, OR 97301

(503) 945-5617

dhs.recordsrequest@odhs.oregon.gov

I would really appreciate being able to work with you and to meet to discuss the calls of concern I received. Please let me know when you would be available to do this and how you would like to proceed.

Thank you,

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Thursday, September 18, 2025 12:16 PM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Subject: Re: In The Matter of Al-mira Davis

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

> s. Crafton,
>
> [Quoted text hidden]

3 attachments

Court Attorney Application 4.2021.pdf
265K

Safety Plan - Davis.pdf
717K

1536.pdf
1608K

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Oct 14, 2025 at 9:58 AM
To: juvenileweb@washingtoncountyor.gov, DAVID.MILNE@odhs.oregon.gov

Juvenile Clerk,

The attached filings are provided for record in *In re Almira Davis, Case No. 25JU04261.* Court staff previously stated that this filing "did not meet court requirements," yet no rule, statute, or written deficiency notice was provided.

The Clerk and Court Had a Non-Discretionary Duty to File and Consider Jurisdictional Pleadings
Under **ORS 7.020** and **UTCR 2.010(6)–(7) as well as under ORS 419B**, clerks must accept and file any paper presented for filing unless the document is so defective that it cannot be identified as belonging in the case. Even then, the reason for rejection must be specified in writing. No such written basis was provided.

Moreover, jurisdictional challenges under **ORCP 21 A(1)** implicate due process and are mandatory matters for judicial—not administrative—determination. The clerk has no authority to summarily determine a pleading's sufficiency or to deny filing based on a subjective assessment of "requirements."

This notice preserves the fact and content of the filing for the official record.

Respectfully,
/s/ Ash Le' Penn

[Quoted text hidden]

2 attachments

orcp21.pdf
237K

mothers declaration.pdf
274K

Milne David <DAVID.MILNE@odhs.oregon.gov> Wed, Oct 15, 2025 at 11:20 AM
To: "ashlepenn.ap3@gmail.com" <ashlepenn.ap3@gmail.com>
Cc: Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>

Hi AshLe,

Please find attached the current Safety Plan. During our phone conversation you said you had not received a copy of the Safety Plan

nor the case records you had requested.

It appears the CPS worker Ashley Crafton did in fact send you a copy of the safety Plan on 10/1/2025 and instructions on how to attain

the records regarding this case.

I am forwarding you Ashley's email to you as it appears you must have overlooked it.

Cheers Dave Milne

From: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Sent: Wednesday, October 15, 2025 11:11 AM
To: Milne David <DAVID.MILNE@odhs.oregon.gov>
Subject: FW: In The Matter of Al-mira Davis

From: CRAFTON Ashley L
Sent: Wednesday, October 1, 2025 10:41 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

[Quoted text hidden]

[Quoted text hidden]

3 attachments

Court Attorney Application 4.2021.pdf
265K

Safety Plan - Davis.pdf
717K

1536.pdf
1608K

AshLe' Penn <ashlepenn.ap3@gmail.com> Wed, Oct 15, 2025 at 1:02 PM
To: Milne David <DAVID.MILNE@odhs.oregon.gov>

Mr. Milne,

My daughter was taken on September 6, 2025. During a shelter hearing on September 8, 2025 your agents relayed to the court that I REFUSED a safety plan that you acknowledge was sent to me on October 1, 2025. I never said I had never received the safety plan - please stop misconstruing my words. What I said was that it is perjury to have asserted to the court that I had refused such safety plan as that would be impossible since you are aware it was sent to me nearly a month after her removal.

I'd appreciate it if you approached me with honesty and stop trying to posit that somehow I have misrepresented or misconstrued something. I'm sure you're aware - as you were notified at the start of the call that the call was recorded yesterday. And so, I never said I'd never gotten a safety plan. Again, DHS perjured themselves by telling the court during the shelter hearing that I'd refused it. Please tell me how I could have possibly refused something on 9/8/25 that wasn't presented to me until 10/1/25.

As to other matters not involving DHS' continued dishonesty and your clearly trying to perpetuate that dishonesty by telling me that I was mistaken when I was not, I've sent you an invoice and I've also asked for you to approach your central office about these very matters.

Instead of approaching me with extraneous communications about something that isn't true, is it possible you might have something of substance to posit related to that invoice or the notification to your central office?

I'll look forward to a meaningful response. And please look out for my written tort claim notice and demand.

Regards,

Ash Le' Penn
[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, Oct 24, 2025 at 7:42 AM
To: richard.e.moellmer@ojd.state.or.us
Cc: "Kimberly A. Beck" <kimberly.a.beck@ojd.state.or.us>, CountyCounsel@washingtoncountyor.gov, Milne David <DAVID.MILNE@odhs.oregon.gov>

Dear Mr. Moellmer et al.,

NOTICE OF SPECIAL APPEARANCE

This communication constitutes a special appearance made solely for the purpose of challenging the court's jurisdiction and objecting to void proceedings. Nothing contained herein shall be construed as a general appearance, consent to jurisdiction, or acquiescence to the court's authority over me. I explicitly reserve all objections to personal jurisdiction and maintain that the court lacks authority to proceed in the absence of proper service of summons and petition as required by Oregon law. This communication is an extension of my initial special appearance filing that was improperly rejected by the clerk's office on September 8, 2025, for which Ms. Beck responded to.

I am writing in response to an email from Juvenile Case Processing Clerk, Juvenile Department Lead, Kimberly Beck, dated September 9, 2025, in which she asserted that my "personal appearance was required" at the September 8th shelter hearing and that my written filing did "not satisfy court requirements" without specifying what requirements were not satisfied.

I acknowledge that this written communication comes several days after Ms. Beck's initial email, however, this timing reflects my reasonable expectation that, upon my filing of a second motion which explicitly notified the court of the complete absence of personal jurisdiction due to a total lack of service of summons and petition, the court would cease further proceedings affecting my parental rights until proper jurisdiction could be established. Instead, the court has proceeded with multiple hearings - including a shelter hearing and status conference - and has stated on the record during a recent status conference that the failure to serve me with summons and petition "doesn't matter" and would not prevent the court from continuing to act violating the very tenets that vest the court with its authority.

This communication is to formally object to the assertion that it doesn't matter whether I've been served, that my physical in-court presence was required and that my filing of special appearances somehow did not meet court requirements which are legally and factually untenable. I intend to bring to your attention the profound jurisdictional and due process violations that have occurred in this matter.

JURISDICTIONAL CHALLENGE

The court's authority to proceed in a juvenile dependency case is not discretionary; it is strictly defined by statute. Under Oregon Revised Statutes Chapter 419B, jurisdiction over a parent attaches only upon the issuance and lawful service of a summons and petition. Specifically:

ORS 419B.838 mandates the requirements for proper service of a summons.
ORS 419B.815 establishes jurisdictional prerequisites, stating: "A court may make an order establishing jurisdiction under ORS 419B.100 **only** after service of summons and a true copy of the petition..."
ORS 419B.848(3) provides that "All papers requiring service, may be transmitted from any place by telegraph, facsimile or electronic mail."

I have received neither a summons nor a petition providing me with constitutionally and legislatively sufficient notice of the substance and pendency of this action. The only document provided was a "Notice of Protective Custody" pamphlet, which is not a substitute for a summons. Without proper service, the court had no authority to compel my personal presence nor to proceed with any hearings affecting my rights in any proceedings, to include, now, all the proceedings which have occurred to date.

While ORS 419B.836 provides a "saving clause" for *minor defects* in a summons, it does not excuse a *complete and total absence of service*. This statutory clause cannot cure a jurisdictional and constitutional void created by a total failure to issue and serve a summons and petition in the first instance. Furthermore, ORS 419B.839 states that a summons *may* be issued to require a parent's physical presence in court, confirming that such compulsion is not automatic and must be predicated on a validly issued and served summons. Without satisfying any of these statutory conditions precedent, the state appears to have proceeded with a juvenile dependency shelter hearing and status conference that it had no authority to conduct, both entirely without jurisdiction and with the court's acknowledgment of such a defect being made on the record in the latter of the two hearings. Meanwhile, my daughter's whereabouts have been concealed from me since before any valid court order was entered, dating back to September 6, 2025 (going on nearly two months), and my contact with her has been restricted with absolutely no legal basis as to why.

SPECIAL APPEARANCE AND DENIAL OF ACCESS TO COURTS
In response to the clerk's claim that I 'failed to appear,' I assert that I did make a lawful special appearance to contest the tribunal's jurisdiction while upholding my parental rights. My written submission constitutes a valid form of appearance as per Oregon law when contesting jurisdiction. Unfortunately, I was barred from court as the juvenile clerk's office declined to accept my submission.

Initially, I was informed that I could not file anything; this statement later changed to indicate that any filing must occur in person. Such statements contravene juvenile dependency law and civil regulations in Oregon and are unjustifiable. No legal grounds were given for rejecting my first special appearance or for claiming that only an in-person submission or appearance would be acceptable.

According to ORS 419B.851, the juvenile clerk is mandated to accept and file submissions; this is a ministerial action, not a discretionary one. The refusal to accept my filing unlawfully obstructed my right to access the court and breached my First Amendment right to petition the government, as well as my statutory right to participate in

custody-related proceedings for my child.

The clerk's initial rejection of my filing on September 8, 2025, which was based solely on ORS 419B statutes pertaining to juvenile dependency and later acceptance of a second, identical filing for tribunal consideration, illustrates that the first denial was arbitrary and discriminatory. The disparate handling of identically filed special appearances—where the first referenced only juvenile dependency statutes and the second, a motion to dismiss, was rejected solely because it did not specify those statutes—indicates that the rejection was not due to a legitimate procedural issue but rather an improper denial of my right to address fundamental jurisdictional matters.

ORS 419B.851 states:

> (5) The filing of any papers with the court must be made by filing them with the clerk of the court or the person exercising the duties of that office. The clerk or the person exercising the duties of that office shall indorse the time of day, day of the month, month and year upon the paper. The clerk or person exercising the duties of that office is not required to receive any paper for filing unless:
>
> (a) The contents of the paper are legible; and
>
> (b) All of the following are legibly indorsed on the front of the paper:
>
> (A) The name of the court;
>
> (B) The title of the cause and the paper;
>
> (C) The names of the parties; and
>
> (D) If there is one, the name of the attorney for the parties requesting filing.

My initial filing satisfied all statutory requirements and should have been accepted. The court's rejection of my second filing, solely on the basis that the Oregon Rules of Civil Procedure do not apply to the first filing— which properly referenced juvenile dependency statutes— constitutes a denial of access. This improper dismissal of a legitimate challenge to jurisdiction, coupled with an actual absence of jurisdiction, renders the subsequent proceedings invalid from the outset.

FILING REQUIREMENTS ANALYSIS

Ms. Beck's claim that my submission failed to satisfy court standards is without merit. This communication is not a request for legal advice but a demand that the juvenile dependency department and Oregon DHS comply with applicable laws and constitutional rights. I request clear legal justification for deeming my original filing insufficient. In the absence of a specific defect, the ruling of insufficiency appears arbitrary, especially since the juvenile department accepted my second submission and forwarded it to the court for consideration. Any assertion that the rejection of my second special appearance is valid under the Oregon Rules of Civil Procedure is unfounded, as my initial special appearance did not reference the ORCP but rather juvenile dependency statutes. My filing included the court's name, case title, and party names, was clear, and was submitted for the record. It met all requirements, and its rejection was unwarranted.

VOID PROCEEDINGS AND JURISDICTIONAL DEFECTS

The jurisdictional defects are exacerbated by the fact that any evidence or testimony given at the invalid September 8 and most recent status conference cannot legally support ongoing proceedings. Records of text messages indicate that DHS deemed me suitable for placement and planned to return my daughter to me on the evening of Saturday, September 6. This decision was suddenly overturned based on a contentious hearsay statement. Such evidence, presented in a jurisdictionally flawed proceeding, holds no legal validity. I was not permitted to challenge or cross-examine this evidence as the court dismissed my filing and denied my request for remote participation. This obstruction of access to the courts, coupled with the lack of jurisdiction, renders any findings or orders from that hearing void from the outset.

DOCUMENTATION

Accordingly, I formally demand that the Juvenile Department provide the following:

- Proof of service already on file, complete with the date, method/manner of service, a sworn statement from the serving individual, and the location and time of service.
- Clarification of what the court has relied on to establish that jurisdiction was properly acquired over me in the absence of a served summons or proof of service.
- All documentation (including any transcripts), evidence, or testimony presented at the void September 8 hearing, while noting my objection that such evidence cannot form a lawful basis for continued proceedings.
- Immediate written disclosure of my daughter Almira's current location and placement information, which continues to be unlawfully concealed and contact with her restricted without any lawful basis.

Please acknowledge receipt of this communication as a special appearance for the sole purpose of challenging the court's jurisdiction and as a renewal of my first filing, without consenting or acquiescing to the court's authority. Kindly ensure all filings and objections are properly accepted and docketed. Further, I respectfully request that proceedings related to the subject matter be immediately dismissed pending resolution of this jurisdictional challenge. Please confirm preservation of all records, filings, and communications related to this matter.

NOTICE OF CLAIM UNDER OREGON TORT CLAIMS ACT (ORS 30.275)
TO: Washington County, Oregon Department of Human Services and the State of Oregon
CLAIMANT: AshLe' Penn, Natural Mother of Almira Davis

Initial Violations: September 6, 2025, and ongoing
Location: Washington County Circuit Court, Juvenile Department

CIRCUMSTANCES:
Washington County employees and other state actors have violated the claimant's constitutional and statutory rights by:

Malfeasance (wrongful or unlawful act)

- The court proceeding without jurisdiction due to failure of proper summons and petition service is malfeasance by the court or state actors, because they affirmatively acted despite lacking lawful authority.
- The clerk’s office rejecting proper filings and obstructing access to the court could also be construed as malfeasance, as this is an unlawful misuse of official power violating constitutional rights.

Nonfeasance (failure to act when duty exists)

- The failure to serve summons and petition as required by statute is nonfeasance—a refusal or omission to perform the duty to properly notify and provide due process.
- Concealment of my child's location and failure to provide timely information amount to nonfeasance, a refusal to act where there is a legal duty to disclose.

Misfeasance (improper or negligent performance of duty)

- The court's continuation of hearings despite knowledge of jurisdictional defects could be viewed as misfeasance—i.e., conduct that is legally authorized but performed improperly, negligently or in disregard of legal standards.
- Arbitrary rejection then acceptance of filings under inconsistent grounds may be misfeasance, indicating improper exercise of clerical or ministerial duty.

(Note: Additional claims may be pursued against other state actors for related conduct outside the court's direct purview.)

EXTENT OF INJURY:

Claimant has suffered injuries that are not only monetary but deeply personal and constitutional, encompassing harm to liberty, family integrity, and fundamental due process. All of these are recognized as compensable under Oregon's legal framework.

Economic Damages

Legal costs and expenses incurred in responding to unlawful proceedings.

Lost income or opportunity costs due to time spent addressing the litigation.

Costs of securing alternative legal representation or support services.

Noneconomic Damages

Emotional distress, anxiety, and psychological trauma caused by unlawful separation from your child.

Loss of parental companionship, care, comfort, and familial association.

Harm from deprivation of constitutional rights, such as due process, equal protection, and First Amendment rights.

Ongoing stress and uncertainty related to the concealment of the Claimant's child's location and contact restrictions.

Damages for infringement on fundamental parental rights and liberty interests protected under the U.S. and Oregon constitutions.

Constitutional and Statutory Basis

Oregon courts recognize the severity of emotional and parental relationship harm in due process and tort claims.

Recent Oregon case law has abolished caps on noneconomic damages in personal injury claims, opening the door to substantial recovery for emotional and constitutional injuries.

Claimant may also pursue punitive damages for willful or malicious violations of rights, aiming to both compensate and deter further misconduct.

AMOUNT OF DAMAGES:

To be determined, but including compensatory damages for emotional distress, loss of parental relationship, economic losses, and punitive damages for deliberate constitutional violations. This notice is provided pursuant to ORS 30.275 as a prerequisite to filing a civil action. This notice preserves all rights to seek additional damages as they become ascertainable.

RESERVATION OF RIGHTS

Additionally, despite repeated inquiries, I have not been officially informed where my daughter Al-mira is currently placed, nor have I received any documentation or order authorizing her removal or restricting my contact. This continued concealment raises grave due process concerns and interference with parental rights that is actionable under 42 U.S.C. § 1983.

Please be advised that you are hereby instructed and obligated to preserve all documentation, communications, records, transcripts, evidence, and electronically stored information (ESI) related to this matter, including but not limited to all filings, hearing records, motions, correspondence, electronic communications, and any data concerning the service of summons and petition, jurisdictional challenges, and court proceedings from the inception of this case through its resolution.

Any routine or other destruction, alteration, deletion, or disposal of such materials—whether physical or electronic—or any attempts to suppress, conceal, or withhold such evidence would constitute spoliation and may lead to sanctions, adverse inferences, or other legal consequences.

This preservation obligation extends to all relevant data stored in court, government agency records, clerk's office files, electronic mail systems, text messages, case management systems, and all backup or archived materials.

You are respectfully requested to promptly confirm receipt of this preservation notice and confirm that full preservation measures have been implemented.

In closing, I formally object, through this subsequent special appearance, to any reliance on an alleged "failure to appear." I did not waive jurisdictional objections, and I expressly appeared specially by filings improperly denied by the Juvenile Clerk. Until proper summons and service are made, and even then, this court has acted in the absence of its jurisdictional authority to have compelled any physical appearance or proceed further in issuing orders affecting my legal rights. Please ensure this response is entered into the record. I reserve all rights and objections.
Respectfully,

/s/ AshLe' Penn Without Prejudice
Appearing Specially, Natural Mother

CERTIFICATE OF SERVICE
I hereby certify that a true and correct copy of the foregoing was served upon all parties by electronic mail on this 20th day of October, 2025.

- Washington County Trial Court Administrator - Richard Moellmer

  richard.e.moellmer@ojd.state.or.us

- Juvenile Dependency Clerk - Kimberly Beck

  kimberly.a.beck@ojd.state.or.us

- County Counsel - Courtney Duke Driesson

  CountyCounsel@washingtoncountyor.gov

- Oregon DHS Permanency Worker - David Milne

  DAVID.MILNE@odhs.oregon.gov

/s/ AshLe' Penn Without Prejudice

On Tue, Sep 9, 2025 at 3:09 PM Kimberly A. Beck <Kimberly.A.Beck@ojd.state.or.us> wrote:
[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, Dec 12, 2025 at 12:30 PM
Draft To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>, Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>
Bcc: 244458502@forward.na2.hubspot.com

Ms. Crafton,

Please allow me to assist in conveying my daughter's name correctly; Al-mira is the proper way it is to be spelled if you don't mind and thank you. Also, e3I write to clarify several fundamental legal principles that appear to be either misunderstood or deliberately misconstrued in your continued correspondence.

Regarding Your Assertion of My "Obligations":

You state, "In order for counsel to be appointed on your behalf, you must fill out the court appointed attorney paperwork." This framing inverts the proper legal hierarchy and warrants correction.

I am keenly aware that completing court-appointed counsel paperwork would assist DHS in curing jurisdictional defects by creating the appearance of my voluntary submission to the court's authority. I decline to participate in this process. Your correspondence consistently imposes purported obligations upon me while systematically avoiding the agency's own non-discretionary, ministerial duties. This pattern is noted.

To be unequivocally clear: I do not object to counsel. I affirmatively preserve my constitutional right to counsel. However, I will not facilitate the agency's attempt to bootstrap jurisdiction by completing paperwork for proceedings that were not lawfully commenced at their inception.

The Agency's Jurisdictional Failure:

DHS is a creature of statute and possesses only those powers specifically delegated to it by the Oregon Legislature. The agency may not act outside its statutory authority, nor may it dispense with mandatory procedural requirements simply because compliance proves inconvenient or time-consuming.

ORS 419B.815 and ORS 419B.848 establish that personal jurisdiction over a parent in a juvenile dependency proceeding requires proper service of summons and petition. These are not discretionary recommendations—they are mandatory, ministerial acts that constitute jurisdictional prerequisites. *In re Mandy M.*, 141 Or App 563, 568-69 (1996) confirms that service requirements in juvenile dependency cases are strictly construed because they implicate fundamental constitutional rights.

The statutes do not provide for constructive service in juvenile dependency proceedings. The court does not supply itself with jurisdiction through subsequent hearings or appointments of counsel. **Jurisdiction must be lawfully acquired at the threshold through competent proof of proper service.**

Regarding the Agency's Mischaracterization of My "Failure to Appear":

You state I was "informed of this hearing, however, did not attend." This characterization is factually incorrect and legally misleading on multiple grounds.

First, this language presumes facts not in evidence and glosses over a critical threshold question: was I properly served with a summons and petition as required by statute prior to that hearing? The only document I have received is a "Notice of Protective Custody" pamphlet, which is not a summons or petition and does not confer jurisdiction. I have not been personally served with a summons and petition in accordance with ORS 419B.848.

I pose this question directly and expect a direct answer: **On what specific legal basis does DHS construe that it had personal jurisdiction over me on September 8, 2025, sufficient to characterize my absence as a failure to attend rather than a failure by the agency to properly initiate proceedings?**

Provide the proof of service showing the date, time, location, and method by which I was served with a summons and petition. If no such proof exists because service was never accomplished, then the agency's characterization of my "not attending" a hearing is fundamentally misleading. One cannot fail to attend proceedings to which one has not been lawfully summoned.

Second, and critically, your assertion that I "did not attend" the September 8, 2025 hearing is demonstrably false. **I did appear—through a special appearance made by written filing specifically to challenge the court's jurisdiction and the agency's procedural violations.**

ORCP 7 governs where juvenile dependency statutes are silent. ORCP 7 D(3)(a) explicitly recognizes that a party may appear through written filings, stating: "A party appears in an action by filing with the court...a written demand, demurrer, notice, motion, answer, reply, or other paper properly filed in the action."

I filed a written special appearance challenging jurisdiction. Under Oregon law, this constitutes an appearance for the limited purpose of contesting the court's authority to proceed. The agency's continued assertion that I "did not attend" either reflects a fundamental misunderstanding of procedural law or a deliberate misrepresentation designed to paint me as non-compliant.

Which is it? Does the agency deny receiving my written filing, or does it simply refuse to acknowledge that written filings constitute appearances under ORCP 7?

Your characterization of my conduct is both factually wrong and legally improper. I appeared. I did so in the manner explicitly authorized by Oregon procedural rules. The agency's refusal to acknowledge this appearance while simultaneously claiming I failed to comply with court obligations is yet another example of the pattern of misrepresentation that has characterized this entire matter.

The agency cannot initiate dependency proceedings, obtain temporary custody orders, direct me to attend hearings, instruct me to complete counsel paperwork, and schedule case planning meetings without first establishing jurisdiction through compliance with mandatory service requirements. These actions constitute ultra vires conduct—acts beyond the scope of the agency's delegated authority when the foundational jurisdictional predicate has not been satisfied.

Your instruction that I "must" complete paperwork to facilitate counsel appointment presumes jurisdiction that you have not demonstrated was properly established. I will not assist DHS in remedying its failure to comply with mandatory statutory requirements at the outset of these proceedings. The defect is not cured by subsequent participation; it renders the proceedings void ab initio.

Critical RPC 4.2 Violation:

Your continued direct communication with me creates an additional, serious legal problem that must be addressed immediately.

You state that "the court identified prospective counsel" for me at the September 8 hearing and instruct me to complete paperwork so counsel can be appointed "on [my] behalf." This language suggests DHS believes I either have been appointed counsel or that counsel appointment is imminent and inevitable.

If DHS or its legal counsel believes I am represented or have been appointed counsel, then every communication you have sent to me directly—including instructions to attend meetings, discuss "open assessments," address "calls of concern," and complete case planning—constitutes a violation of Oregon RPC 4.2.

Oregon RPC 4.2 prohibits a lawyer (including government counsel representing DHS) from communicating about the subject of the representation with a party the lawyer knows to be represented by another lawyer, unless that lawyer consents or the communication is authorized by law.

By directing you to communicate with me about substantive case matters while simultaneously asserting that counsel has been "identified" for me, **DHS's attorneys are either:**

1. **Violating RPC 4.2 by instructing you to contact a represented party directly**, or
2. **Acknowledging that I am not represented**, in which case the agency must cease deflecting my questions and fulfill its obligations to communicate with me directly.

DHS cannot have it both ways. You cannot simultaneously claim I should have counsel appointed and then communicate with me directly about the very matters that counsel would handle. This is not a technical point—it is a fundamental ethical violation that implicates the professional responsibility of every attorney involved in directing your communications.

Which is it, Ms. Crafton? Does DHS consider me represented—in which case all communication must cease immediately and be directed through counsel—or does DHS acknowledge I am unrepresented, in which case you must respond substantively to my inquiries without deflection?

Your current approach—instructing me to obtain counsel while continuing to communicate with me directly—is legally untenable and exposes DHS's counsel to potential disciplinary action.

Regarding the Improper Conflation of Administrative Investigation with Judicial Proceedings:

Your correspondence references a desire to "meet to discuss the calls of concern" and "open assessments." This language reveals a fundamental confusion—or deliberate conflation—of the agency's administrative investigative functions with its role as a party to ongoing judicial proceedings.

Once DHS initiated judicial proceedings by filing a dependency petition and seeking temporary custody orders, the matter transitioned from the administrative sphere into the judicial framework. The agency cannot now use the judicial action it initiated to compel my participation in what are essentially ongoing administrative investigations.

The procedural protections, evidentiary standards, and due process requirements that govern judicial dependency proceedings are fundamentally different from—and more stringent than—those governing administrative child welfare investigations. DHS cannot exploit the coercive power of judicial proceedings (removal of my child, court orders, threatened consequences for non-compliance) to further administrative investigations that should have been completed prior to initiating court action.

If DHS had "calls of concern" that warranted investigation, those investigations should have been conducted before removing my child and petitioning the court. The agency cannot now assert an obligation on my part to participate in meetings to discuss investigative matters while simultaneously prosecuting judicial proceedings based on allegedly completed assessments and determinations.

Which framework are we operating under, Ms. Crafton? If this is a judicial proceeding, then provide the discovery, documentation, and evidence supporting the agency's claims through proper legal channels. If this is still an administrative investigation, then the removal of my child and initiation of court proceedings were premature and unlawful.

You cannot have both: you cannot use the judicial system's coercive authority to compel participation in administrative investigations while deflecting procedural obligations on the grounds that these are "legal matters" outside a caseworker's purview.

Regarding the Safety Plan and Perjurious Representations:

You attached a safety plan to your email. This requires immediate clarification and correction of the record.

At the shelter hearing, DHS represented to the court that I "refused to cooperate with a safety plan." This representation was false. The agency knows it never presented a safety plan to me prior to making that representation to the court.

This constitutes perjury—a knowing false statement made under oath to a court regarding a material fact.

The timing of your email—attaching a safety plan after the court hearing where the agency falsely claimed I refused it—does nothing to cure the false testimony already given. If anything, it demonstrates consciousness of the agency's wrongdoing: you are now attempting to create a paper trail that should have existed before the representation was made to the court.

I did not refuse a safety plan. **I was never presented with a safety plan to refuse.** The agency's representation to the contrary was a lie, made under oath, for the purpose of securing a custody order against me.

This is not a minor procedural irregularity. This is deliberate misrepresentation to a judicial officer for the purpose of depriving me of my child. It undermines the integrity of the entire proceeding and calls into question every representation DHS has made or will make to the court.

I expect the agency to correct this false representation immediately by filing an appropriate motion with the court acknowledging that no safety plan was presented to me prior to the shelter hearing and that the testimony suggesting I refused cooperation was inaccurate.

Regarding "Options" You Present:

You offer several options: complete court-appointed paperwork, retain private counsel, or proceed pro se. Notably absent from your list of options is the one I am exercising: **challenging the agency's actions through proper legal channels, including filing motions with the court regarding jurisdictional defects, procedural violations, and perjurious testimony.**

This omission is striking. It suggests a preference for presenting only those options that serve the agency's interests while obscuring those that protect parental rights. For the record: I am pursuing all available remedies to challenge DHS's conduct in this matter, including but not limited to the unlawful removal of my daughter accomplished through defamation and perjury, the agency's failure to establish jurisdiction through proper service, the agency's false representations to the court, the agency's failure to provide mandatory documentation, and its systematic disregard for statutory requirements.

Regarding Counsel and Agency Obligations:

Whether I have retained counsel, intend to retain counsel, or proceed without counsel is immaterial to your duty to answer the questions posed in my prior correspondence. Those questions concern:

- The agency's own record-keeping (contact logs documenting attempts to reach me "since July")
- **Proof of the agency's compliance with service requirements (proof of service filed with the court showing when, where, and how I was served with summons and petition)**
- The factual and legal basis for removal (reasonable efforts per ORS 419B.192, protective capacity assessments per OAR 413-040-0006, specific identified harm to Almira)
- **The safety plan I allegedly "refused to cooperate with"—when was it presented to me, how was my refusal documented, and who can attest under oath to having presented it?**
- The evidentiary foundation for continued custody (who documented Almira's alleged statement, how it was recorded, steps taken to reconcile her direct denial)
- The legal authority for restricting all parent-child communication (identify the court order or statutory basis)
- The status of my May 2025 public records request and the documents responsive to my current inquiries

None of these inquiries require legal advice from counsel. They require factual answers and documentation from DHS. The agency's obligations to maintain records, document reasonable efforts, conduct assessments, provide notice, effectuate proper service, and produce public records are not contingent upon my representation status. These are ministerial duties that exist independently of whether a parent has counsel.

Your repeated deflection—insisting I must obtain counsel before you will provide basic information about the agency's own actions—constitutes an improper barrier to accountability. The questions I have posed **could not possibly be answered by counsel** because they concern the agency's internal documentation, conduct, and decision-making processes. Only DHS possesses this information, and only DHS can produce it.

The procedural rules governing represented parties apply only when jurisdiction has been properly established and a party has, in fact, obtained representation. Neither condition has been satisfied here. You are obligated to communicate with me directly and to fulfill your statutory duties without conditioning compliance on my completion of paperwork that serves the agency's jurisdictional interests rather than my procedural rights.

Failure to fulfill these non-discretionary obligations exposes both you individually and the agency institutionally to further scrutiny and potential liability for civil rights violations under 42 U.S.C. § 1983, as well as state-law remedies for unlawful removal, deprivation of parental rights, and malicious prosecution arising from perjurious testimony.

Regarding Public Records:

You refer me to the "records department" and provide contact information for the ODHS Public Records Unit. This response fails to acknowledge that I submitted a formal public records request in **May 2025**—more than five months ago and **prior to my daughter's removal**. That request remains unfulfilled without explanation, apology, or identification of any statutory exemption justifying the delay.

ORS 192.329 requires agencies to respond to public records requests "within a reasonable time." Five months is not reasonable by any standard. The agency's failure to produce these records has placed me at a severe tactical disadvantage in responding to the dependency action and appears calculated to prevent me from effectively challenging the agency's allegations.

Moreover, if DHS possessed assessments, founded dispositions, or other documentation justifying removal, the agency was statutorily obligated to notify me of these findings and provide copies pursuant to ORS 419B.020 and OAR 413-010-0700 through 0750. The failure to do so—combined with the withholding of records I requested months ago—constitutes a pattern of non-compliance that undermines the integrity of this entire proceeding.

If there is now such urgency to "discuss calls of concern," one must ask: why were the records I requested months ago not released in a timely manner to permit me the opportunity to address any allegations at that time? The withholding appears deliberate and prejudicial, creating the very tactical advantage that public records laws were designed to prevent.

Conclusion:

The agency initiated these proceedings without satisfying the foundational jurisdictional requirement of proper service. It made false representations to the court regarding a safety plan that was never presented to me. It has mischaracterized my special appearance as a "failure to attend." It continues to conflate administrative investigations with judicial proceedings. And it systematically deflects its mandatory obligations while imposing fictional obligations on me.

I will not schedule a meeting, complete court-appointed counsel paperwork, or engage in case planning discussions or administrative investigations until DHS:

1. **Produces proof of service demonstrating that I was properly served with summons and petition in accordance with ORS 419B.848 prior to the September 8, 2025 hearing.** If no such proof exists, acknowledge that service was not accomplished and explain on what basis the agency proceeded to obtain custody orders.
2. **Acknowledges receipt of my written special appearance filed with the court and retracts the false characterization that I "did not attend" the hearing.**
3. **Files a motion with the court correcting the perjurious testimony that I "refused to cooperate with a safety plan" and acknowledges that no safety plan was presented to me prior to that representation being made.**
4. **Clarifies immediately: Does DHS consider me represented by counsel?** If yes, all direct communication must cease per RPC 4.2. If no, you must respond substantively to all inquiries without deflection.
5. **Clarifies whether this matter is operating under a judicial or administrative framework**, and ceases using judicial coercion to compel participation in ongoing administrative investigations.
6. Provides itemized responses to each question in my previous correspondence
7. Releases all documents requested in my May 2025 public records request, or identifies with specificity the statutory exemption for each withheld document

You are attempting to compel my participation in proceedings that were not lawfully initiated, based on testimony that was demonstrably false, while simultaneously withholding the information necessary for me to assess the validity of the agency's actions. This inversion of due process will not stand.

I expect substantive, documented responses—not further referrals or instructions to complete paperwork that would cure the agency's own jurisdictional failures and cover up its false representations to the court.

Sincerely,
AshLe' Penn

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Jul 14, 2026 at 5:11 PM

To: Brittney Horsley <bhorsleycpht@gmail.com>

Forwarded Conversation

Subject: In The Matter of Al-mira Davis

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
To: <juvenileweb@washingtoncountyor.gov>

To The Juvenile Court,

I am writing to confirm the substance of our recent telephone conversation and to formally submit a filing in the above-referenced juvenile case involving my daughter.

During our call, I was informed that I am not permitted to file documents in this case and that filings must be made in person (both of which could not simultaneously be valid). I explained that I am unable to attend in person at this time. Moreover, I informed the clerk, before being prevented access to the courts through her ending the conversation, that no proper summons or signed court protective order has been issued or served on me. I attempted to inform her that I am appearing specially through my filings.

In light of this, I am submitting herewith the following filing for your review and inclusion in the case file:

Objection to Referee Jurisdiction

Motion to Participate by Written Filing

Objection to Continued Custody

Demand for Immediate Placement with Natural Mother

Under Oregon law, "any person may file a petition in the juvenile court alleging that a child named therein is within the jurisdiction of the court" (ORS 419B.809(1)). This statute establishes that the court must accept filings from natural parents regardless of physical appearance and that participation through timely written filings is permitted. Denying this right or requiring in-person filing only conflicts with the statutory right to access the court and be heard in juvenile proceedings.

Please treat this email and the attached filing as my formal special appearance and request that the Court docket and consider the matters raised herein, notwithstanding any informal restrictions communicated by the clerk's office.

Kindly confirm receipt of this filing at your earliest convenience. I reserve all rights to pursue any further necessary legal action should my lawful right to file and participate be improperly denied.

Thank you for your attention to this important matter.

Respectfully,

AshLe' Penn

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:47 PM
To: <kat_sanchez@washingtoncountyor.gov>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 3:34 PM
To: <Heather.KITTO@odhs.oregon.gov>

Ms. Kitto,

I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing. I'm communicating this with you for the record.

We will be in touch.

Regards,
AahLe' Penn

---------- Forwarded message ---------
From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
Subject: In The Matter of Al-mira Davis
To: <juvenileweb@washingtoncountyor.gov>

From: **KITTO Heather** <Heather.KITTO@odhs.oregon.gov>
Date: Mon, Sep 8, 2025 at 4:07 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>, CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>

Hello, I am including your current worker and supervisor so that you can work directly with them. I was the on call supervisor this weekend, but won't be involved with your case moving forward.

Sincerely,

Heather Kitto

ODHS CW Supervisor Beaverton

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Monday, September 8, 2025 3:34 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>
Subject: Fwd: In The Matter of Al-mira Davis

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

From: **CRAFTON Ashley L** <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Date: Mon, Sep 8, 2025 at 4:55 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>, AshLe' Penn <ashlepenn.ap3@gmail.com>, imahoney@mpdlaw.com <imahoney@mpdlaw.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ashle,

I am your assigned caseworker. I have been trying to contact you since the end of July. You were notified of court. You did not make yourself available to have any discussions with. All parents are required to show in person unless pre-approved from the judge. I am copying your attorney on this email. I am not an attorney, and she may be able to have a more in depth conversation regarding appearances and legal matters. I would like to schedule a time to discuss assessments I currently have open.

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

From: **Ireland Mahoney** <imahoney@mpdlaw.com>
Date: Mon, Sep 8, 2025 at 5:24 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Hi Ashle',

I am the attorney who was assigned to represent you in this dependency matter. I'd love to chat when you get the chance, but before I do, you must fill out the paperwork to get a court appointed attorney. I can try to get the paperwork and send it over by email for you to sign or you can ask DHS to send you the CAA paperwork.

I hope to hear from you soon.

Ireland Mahoney
5037267000

From: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Sent: Monday, September 8, 2025 4:55:38 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>; AshLe' Penn <ashlepenn.ap3@gmail.com>; Ireland Mahoney <imahoney@mpdlaw.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Tue, Sep 9, 2025 at 6:44 AM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Cc: KITTO Heather <heather.kitto@odhs.oregon.gov>, imahoney@mpdlaw.com <imahoney@mpdlaw.com>, Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ms. Crafton,

Your email dated September 8, 2025, at 4:55 PM, states you have "been trying to contact me since the end of July" and that I "did not make myself available." Both assertions are false and misdirect blame for DHS's failures onto me. I received no communication of any kind—call, email, text, voicemail, letter, or visit—from you or your office prior to the events of this weekend. My phone and email have not changed, remain active, and have been used successfully by others, including DHS supervisor Heather Kitto and her colleagues, who reached me promptly during this same timeframe by simply making the effort to do so.

As you know, DHS Child Welfare Manual §4, "Initial Contact With the Family" (p. 262) requires all attempted contacts with children and parents to be documented in the case file, with date, time, method, and outcome. Consistent with your own agency rules, I hereby demand a written, itemized accounting of every alleged attempt to contact me since July 2025, consistent with your claim.

Your further assertion that "all parents are required to show in person unless pre-approved from the judge" is equally unsupported. The only document I received was a "Notice of Protective Custody" pamphlet, which is neither a summons nor a petition. It contained no directive for mandatory in-person appearance.

ORS 419B.838 requires proper service of summons or notice in dependency cases, and ORS 419B.848 makes proof of service a jurisdictional prerequisite. Importantly, ORS 419B.815 establishes that "A court may make an order establishing jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition," and mandates that a summons require personal appearance or written answer to the petition. Without proper service and proof in the record, the court lacked jurisdiction to proceed with the shelter hearing. The "Notice of Protective Custody" I received does not meet ORS 419B.815's statutory summons requirements as it lacked any petition or proper summons and omitted notification of personal appearance obligations.

I attempted to appear specially through a written filing to make such challenges and objections, but that filing was rejected by juvenile department staff, who initially told me I could not submit anything in the case and that, contrarily, filings could only be made in person. The juvenile code guarantees my right to participate and be heard. I was thereby denied access to the proceedings. The hearing likely proceeded in my absence, without jurisdiction, without proper notice or summons, and without my being informed of my daughter's location.

Finally, I must address the supervisor's message reporting that hospital staff felt I was "escalating" when I called seeking information. Those calls were made only because DHS gave me conflicting information as to whether my daughter was even at the hospital. Under those circumstances, my persistence was not "escalation" but the only means available to verify my daughter's location and safety. Attempts to recast a parent's urgent inquiries as misconduct are improper and retaliatory.

On these facts:

DHS has failed to comply with ORS 419B.838, ORS 419B.848, and ORS 419B.815;

DHS has not produced required documentation of contact attempts per its own Child Welfare Manual;

I was obstructed from filing and participating in violation of due process;

My child has been removed without lawful notice, jurisdiction, or disclosure of placement.

Accordingly, I demand:

A written, itemized accounting of all alleged contact attempts since July 2025;

Clarification of DHS's official notification and appearance practices;

Immediate disclosure of my daughter's placement and status;

Formal acknowledgment that I seek a rehearing and review due to these procedural defects and jurisdictional failures.

The removal report

The petition

Regards,
AshLe' Penn

From: **Kat Sanchez** <Kat_Sanchez@washingtoncountyor.gov>
Date: Tue, Sep 9, 2025 at 1:03 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Good afternoon,

I am not sure what your email is in regards as it was sent blank.

Please let me know if you need help being connected to the appropriate staff within the juvenile department.

Thank you,

Kat

CAUTION: This email originated from outside the County. Exercise caution when opening attachments or clicking links from unknown senders. Always follow the guidelines defined in the KnowBe4 training when opening email received from external sources. Contact the ITS Service Desk if you have any questions.

INFO: Washington County email address has changed from @co.washington.or.us to @washingtoncountyor.gov. Please update my contact information.

From: **Kimberly A. Beck** <Kimberly.A.Beck@ojd.state.or.us>
Date: Tue, Sep 9, 2025 at 3:09 PM
To: ashlepenn.ap3@gmail.com <ashlepenn.ap3@gmail.com>

Good afternoon, Ms. Penn,

Your personal appearance was required for the shelter hearing on September 8, 2025, and you failed to appear. Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements.

If you have any further concerns or wish to discuss your situation in more detail, you are welcome to contact our Trial Court Administrator, Richard Moellmer. He can be reached by phone at 503.846.8888 ext.70568 or by email richard.e.moellmer@ojd.state.or.us

Thank you,

Kimberly Beck

Juvenile Case Processing Clerk*
Juvenile Department Lead

Washington County Circuit Court

(503) 846-8888 ext. 70621
*Adoptions, Guardianships, Emancipations, Back-Up Courtroom Clerk for Judge Goldman

NOTICE: *This communication may contain privileged, confidential, or other information exempt from disclosure under applicable law. If you received it in error, please advise me by reply email and immediately delete the message and any attachments without further reviewing, copying, or disclosing the contents.*

From: JUVENILE Web <JUVENILEweb@washingtoncountyor.gov>
Sent: Tuesday, September 9, 2025 9:03 AM
To: WSH Juvenile Admin Staff <wsh.juvenile.admin.staff@ojd.state.or.us>
Subject: FW: [EXTERNAL] In The Matter of Al-mira Davis

WARNING: This email is from outside of the Oregon Judicial Department. If links or files in this email are unexpected, even if from an email address you trust, please call the sender on the phone and verify them before you click.

Forwarding on to you for possible assistance….

Thanx,

Lorena L.

x4453

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From: **CRAFTON Ashley L** <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Date: Tue, Sep 9, 2025 at 5:00 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: imahoney@mpdlaw.com <imahoney@mpdlaw.com>, Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ms. Penn,

Thank you for your email. Some of your questions are regarding legal matters, please speak to your attorney regarding these.

I do need to meet with you regarding the three open calls I have and would like to schedule a time to meet with you to do that. I am available 12pm-5pm on Friday 9/12/2025, Tuesday 9/16/2025 9am-4pm, Wednesday 9/17/2025 8am-5pm or Friday 9/19/2025 9am-4pm. These times may very as things come up so please respond as soon as possible letting me know what day and time works for you.

Thank you

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Monday, September 8, 2025 3:34 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>
Subject: Fwd: In The Matter of Al-mira Davis

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

Ms. Kitto,

I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing. I'm communicating this with you for the record.

We will be in touch.

Regards,

AahLe' Penn

---------- Forwarded message ---------
From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
Subject: In The Matter of Al-mira Davis
To: <juvenileweb@washingtoncountyor.gov>

From: **Ireland Mahoney** <imahoney@mpdlaw.com>
Date: Thu, Sep 11, 2025 at 9:09 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Hi AshLe',

I just noticed that I had a typo in my last message to yo. Please see the correct office number in my signature below.

I noticed you haven't filled out the court appointed paperwork yet, and I am not able to work on your case until you do. However, if you have any questions about how to do that, I would be happy to help you in any way I can.

I hope to talk soon.

Best,

Ireland Mahoney (she/her) | Attorney, Juvenile Unit

Metropolitan Public Defender

400 E. Main St., Suite 210

Hillsboro, OR 97123

Office: 503-726-7900

Legal Assistant Mollie McAdams: mmcadams@mpdlaw.com.

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From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, Sep 12, 2025 at 3:40 AM
To: Barry Washington <barrywashington.bw@gmail.com>

Ms. Beck,

I acknowledge receipt of your email dated September 9, 2025, asserting that my "personal appearance was required" at the September 8 shelter hearing and that my written filing did "not satisfy court requirements".

Under ORS 419B.838 and ORS 419B.848, jurisdiction in a juvenile dependency proceeding attaches only upon the issuance and lawful service of a summons together with the petition upon the parties. Even the savings clause of this chapter (ORS 419B.836) does not excuse absolute absence of service, only minor defects in service which do not act to violate the due process rights of the party against whom "summons was issued". The statute establishes that only parties who would have received the petition and therefore would have knowledge of the substance and pendency of the action, as is required, would or could be compelled to present in-person.

I have received neither a summons nor a petition providing me Constitutionally and legislatively sufficient notice, yet my daughter's whereabouts have been concealed and the state appears to have proceeded with a juvenile dependency shelter hearing that it had no authority to proceed with in the absence of proper, procedurally compliant and substantive interests observant requirements. It is ORS 419B.839 which grants the tribunal the authority to compel an in-person presence, but only if necessary, by stating: "Summons may be issued requiring the appearance of any person whose presence the court deems necessary."

Notwithstanding the fact that I was not afforded constitutionally sufficient or statutorily proper service of summons and petition, I am unable to find any requirement that I would have been aware of that mandated that only a physical in-person presence would suffice.

Although I may not have appeared in person - I did, however, make a special appearance to challenge the jurisdiction of the tribunal and exercise my parental rights but was denied the ability to do so - without being provided under what authority this requirement comes from. Despite that proper notice and service of summons was never effectuated, I did attempt to appear, specially, by filing written objections challenging referee jurisdiction and objecting to the court's neglecting to ensure service was complete on the record.

Unfortunately, I was denied filing access, and thereby denied access to the court, by the juvenile clerk's office, which refused to docket my appearance by refusing to accept my filing and for which the clerk's office provided no lawful basis for prohibiting either remote or written filings in lieu of a personal appearance. In regard to the clerk's refusal to accept my filing, there is legislatively established authority supporting my position that the clerk of a court does not have the authority to deny a filing if it meets statutory requirements, as I'm confident the filing I submitted did just that.

Proceedings that move forward absent proof of service are void for lack of jurisdiction. See ORS 419B.848(3)(a) providing: "All papers requiring service, may be transmitted from any place by telegraph, facsimile or electronic mail."

Respectfully, your statement that my filings did not meet court requirements is legally unsustainable. Are you able to identify the specific defects in my filing making it unsatisfactory to be accepted and to carry out its purpose so that I might be able to correct the issue? Please don't construe this as a request for legal advice, it is not. Moreso, this is a request that I be provided with statutory authority supporting the assertion that my filings did not satisfy court requirements. Without being able to identify exactly why my filing did not "satisfy court requirements", I'd ask how my filing was determined insufficient to carry out its purpose? So, again, this is not a request for legal advice but rather a showing that public officials are acting in accordance with the law.

I believe that under ORS 419B.851, "The filing of any papers with the court must be made by filing them with the clerk of the court or the person exercising the duties of that office. The clerk or the person exercising the duties of that office shall indorse the time of day, day of the month, month and year upon the paper." So long as the filing contains: the name of the court; the title of the cause and the paper; The names of the parties; and since there is not one, the name of the attorney for the parties requesting filing should not have been required.

In observance of this statute, my filing absolutely satisfied court requirements and it would appear that a clerk's indorsement of such a filing is ministerial and not discretionary - requiring the acceptance of my filing notifying the court of my special appearance on the record. Overall, the court has proceeded in this matter lacking authority to do so. If you can provide clarity of under what authority, exactly, this matter is proceeding under - I would be grateful if you could provide it to me.

Further, I must address DHS's conduct in this matter. Initially, DHS contacted me and stated they were prepared to release Almira to me. When I sent my uncle to retrieve her (due to an outstanding warrant preventing my personal appearance), DHS refused this lawful exercise of my parental right to receive family assistance. Approximately 10 minutes later, DHS claimed they had received "new information" that Almira stated she would "kill herself" if returned to my home.

When I spoke with Almira directly about one hour later, she explicitly denied making any such statement and expressed her desire to come home. DHS immediately terminated this call and has prevented all subsequent contact between myself and my daughter. This appears to constitute fabrication of evidence to justify continued detention, followed by silencing of the witness who contradicted their claims.

DEMANDS FOR PRESERVATION OF DOCUMENTS/DOCUMENTATION

Accordingly, I now formally demand that the Juvenile Department provide:

1. Proof of service already occurred complete with the date, method/manner of service, sworn statement from the individual who served the documents as well as the location and time of service;
2. Clarification of what the court has now relied on to establish that jurisdiction has been properly acquired over me in the absence of service of summons or proof of service;
3. Documentation of the alleged "suicide threat" including the identity of the person who allegedly heard this statement, the exact time and circumstances, and any recordings or contemporaneous notes;
4. Justification for terminating my phone contact with Almira and preventing all subsequent communication;
5. Current location and placement information for Almira, which continues to be unlawfully concealed.

TORT CLAIM NOTICE

NOTICE OF CLAIM UNDER OREGON TORT CLAIMS ACT (ORS 30.275)

TO: Washington County and the State of Oregon

CLAIMANT: AshLe' Penn, Natural Mother of Almira Davis

DATE, TIME AND LOCATION:

- Initial violations: September 5, 2025 and ongoing
- Location: Washington County Circuit Court Juvenile Department

Washington County employees and other state actors have violated claimant's constitutional rights by:

1. Proceeding with court hearings without jurisdiction due to failure to serve summons and petition
2. Refusing to accept proper legal filings, denying access to courts
3. Relying on evidence presented in void proceedings to justify continued child detention
4. Violating procedural due process rights and substantive parental rights
5. Concealing child's location and placement information

(Note: Additional claims may be pursued against other state actors for related conduct outside the court's direct purview)

Rights of Action:

- Emotional distress from unlawful separation from minor child
- Loss of parental companionship and constitutional parent-child relationship
- Ongoing constitutional violations and denial of due process
- Economic losses related to legal proceedings and lost time
- punitive damages for deliberate constitutional violations

This notice is provided pursuant to ORS 30.275 as a prerequisite to filing civil action. This notice preserves all rights to seek additional damages as they become ascertainable.

RESERVATION OF RIGHTS

Additionally, despite repeated inquiries, I have not been informed where my daughter Almira is currently placed, nor have I received any documentation or order authorizing her removal or restricting my contact. This continued concealment raises grave due process concerns and interference with parental rights that is actionable

under 42 U.S.C. § 1983.

I formally object to any reliance on alleged "failure to appear." I did not waive jurisdictional objections, and I expressly appeared specially by filing. Until proper summons and service are made, the court lacks authority to compel my physical appearance or proceed further.

Please ensure this response is entered into the record. I reserve all rights and objections.

Respectfully,

/s/AshLe' Penn

Natural Mother

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, Sep 12, 2025 at 3:51 AM
To: Barry Washington <barrywashington.bw@gmail.com>

Ms. Crafton,

Your response dated September 12, 2025, fails to address any of the substantive legal and procedural violations I raised in my previous correspondence. Your instruction to "speak to your attorney regarding these" is an inappropriate deflection of your statutory obligations and does not excuse your agency's failures to comply with state law and your own policies.

OUTSTANDING DEMANDS REQUIRING IMMEDIATE RESPONSE

You have not responded to my specific demands, which I hereby reiterate:

1. **Written, itemized accounting of all alleged contact attempts since July 2025** - Your claim that you were "trying to contact me since the end of July" requires documentation per DHS Child Welfare Manual §4. Produce the records or retract the statement.
2. **Immediate disclosure of Almira's current placement and status** - Concealment of my daughter's location violates my fundamental parental rights and due process.
3. **The removal report and petition** - I am entitled to these documents under ORS 419B.838 and due process requirements.
4. **Clarification of your authority to proceed** - Given the jurisdictional void in the underlying court proceedings.

JURISDICTIONAL DEFECTS PRECLUDE ADMINISTRATIVE ACTION

Your request to meet regarding "three open calls" ignores fundamental legal problems with DHS's authority in this matter. Once DHS invoked court jurisdiction by filing proceedings, your agency shifted from administrative investigation to judicial process. That judicial process is void due to failure to serve summons and petition as required under ORS 419B.838, ORS 419B.815, and ORS 419B.848.

You cannot now retreat to administrative authority when the judicial proceedings have failed. DHS cannot use administrative investigation powers to justify or continue actions taken through void court proceedings. Any "open calls" must be addressed through proper legal process, not meetings designed to bypass jurisdictional requirements.

FABRICATED EVIDENCE AND WITNESS TAMPERING

I must address DHS's conduct regarding the alleged "suicide threat" that your agency used to reverse its initial determination that Almira should be released to me. As documented:

1. **Initial determination**: DHS contacted me stating they were prepared to release Almira to my care
2. **Fabricated reversal**: Approximately 10 minutes after I exercised my parental right to send family assistance (my uncle) to retrieve her, your supervisor claimed Almira had stated she would "kill herself" if returned to me
3. **Child's contradiction**: When I spoke with Almira directly about one hour later, she explicitly denied making any such statement and expressed her desire to come home
4. **Silencing the witness**: DHS immediately terminated our call and has prevented all subsequent contact between myself and my daughter

This sequence constitutes fabrication of evidence to justify continued detention, followed by deliberate prevention of communication that would contradict your agency's false claims. Such conduct violates due process, interferes with parental rights, and potentially constitutes criminal conduct under ORS 162.085 (Official Misconduct).

THIS IS NOT REFUSAL TO COOPERATE

Let me be unequivocally clear: I am not refusing to cooperate with lawful process. I am exercising my constitutional and statutory rights to due process, proper notice, and lawful procedure. My insistence that DHS comply with state law and your own policies is not "uncooperative" behavior - it is the exercise of fundamental rights that cannot be penalized.

Any characterization of my rights-assertion as "uncooperative" or any punitive response to my exercise of constitutional rights would constitute unlawful retaliation. Parents cannot be punished for demanding that government agencies follow the law.

CONDITIONS FOR COOPERATION

I will gladly cooperate with DHS when your agency:

1. **Follows state law** - Complies with ORS 419B.838, ORS 419B.815, and ORS 419B.848 regarding proper service and jurisdictional requirements
2. **Follows your own policies** - Documents contact attempts per Child Welfare Manual requirements and provides required disclosure
3. **Operates within legal authority** - Establishes proper jurisdiction before compelling participation
4. **Ceases fabricating evidence** - Acknowledges and corrects the false "suicide threat" claim
5. **Respects parental rights** - Allows communication with Almira and discloses her placement

LEGAL COMPLIANCE IS NOT OPTIONAL

Your agency's failures include:

- Proceeding without proper court jurisdiction
- Fabricating evidence to justify child detention
- Preventing parent-child communication to maintain fabricated narrative

- Refusing to provide required documentation
- Attempting to compel participation through void proceedings

These violations cannot be cured by scheduling meetings or deflecting to non-existent counsel. They require acknowledgment, correction, and compliance with law.

DEMAND FOR IMMEDIATE ACTION

I demand immediate response to all outstanding requests for documentation and information. Your continued non-response will be documented as evidence of deliberate violation of statutory duties and constitutional rights.

I reserve all rights and remedies under state and federal law, including but not limited to claims under 42 U.S.C. § 1983 for deprivation of rights under color of state law.

Respectfully,

/s/ AshLe' Penn

Natural Mother of Almira Davis

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Thu, Sep 18, 2025 at 12:15 PM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>

> s. Crafton,
>
> Please find attached my formal response to your September 9, 2025 message. This correspondence addresses critical procedural and jurisdictional matters that require your direct response as the assigned caseworker.
>
> The attached letter outlines specific statutory obligations, documentation requirements, and factual discrepancies that must be resolved before any further meetings can be scheduled. These inquiries concern DHS's own mandatory compliance duties under Oregon law and are not requests for legal advice.
>
> I expect your written response within ten (10) business days of receipt, addressing each numbered section and subsection. The questions posed require straightforward, factual answers based on DHS policies, Oregon statutes, and the specific record of this case.
>
> Regards
> AshLe' Penn

From: **CRAFTON Ashley L** <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Date: Wed, Oct 1, 2025 at 10:40 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>, Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>

Dear Ms. Penn,

On September 8, 2025, the Oregon Department of Human Services – Child Welfare sought and was granted temporary custody of Al'Mira. You were informed of this hearing, however, did not attend. At this court proceeding, the court identified prospective counsel for you with the Metropolitan Public Defenders Office. In order for counsel to be appointed on your behalf, you must fill out the court appointed attorney paperwork. I have attached another copy for your review and submission to the court. These documents are required for the court to appoint your legal counsel in Al'Mira's case, and they must be submitted to the juvenile court.

Your options to submit paperwork is to print, complete, scan and email back to me so I can submit this OR, print, complete, and mail/hand deliver to the juvenile court.

If you privately retain counsel, please have them contact ODHS' attorney. Alternatively, you may also choose to represent yourself in these proceedings. If you choose to do so, you must inform our counsel.

If you have questions regarding the specifics of Al'Mira's legal case rather than the ongoing case planning and casework, ie: specific statutory questions, please contact legal counsel as I am unable to advise you.

As for the records request, that is to be directed to our records department, I have included their contact information below.

Washington County Juvenile Court

222 N. 1st Avenue

Hillsboro, Oregon 97124

(503) 846-4701

Metropolitan Public Defenders

400 E. Main St, Suite 210

Hillsboro, Oregon 97123

(503) 726-7900

Oregon Department of Justice – Child Advocacy and Protection (ODHS' Legal Counsel)

100 SW Market Street

Portland, Oregon 97201

(971) 673-1880

ODHS Public Records Unit

500 Summer St NE, E62

Salem, OR 97301

(503) 945-5617

dhs.recordsrequest@odhs.oregon.gov

I would really appreciate being able to work with you and to meet to discuss the calls of concern I received. Please let me know when you would be available to do this and how you would like to proceed.

Thank you,

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Thursday, September 18, 2025 12:16 PM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Subject: Re: In The Matter of Al-mira Davis

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

> s. Crafton,

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Tue, Oct 14, 2025 at 9:58 AM
To: <juvenileweb@washingtoncountyor.gov>, <DAVID.MILNE@odhs.oregon.gov>

Juvenile Clerk,

The attached filings are provided for record in *In re Almira Davis, Case No. 25JU04261.* Court staff previously stated that this filing "did not meet court requirements," yet no rule, statute, or written deficiency notice was provided.

The Clerk and Court Had a Non-Discretionary Duty to File and Consider Jurisdictional Pleadings
Under **ORS 7.020** and **UTCR 2.010(6)–(7) as well as under ORS 419B**, clerks must accept and file any paper presented for filing unless the document is so defective that it cannot be identified as belonging in the case. Even then, the reason for rejection must be specified in writing. No such written basis was provided.

Moreover, jurisdictional challenges under **ORCP 21 A(1)** implicate due process and are mandatory matters for judicial—not administrative—determination. The clerk has no authority to summarily determine a pleading's sufficiency or to deny filing based on a subjective assessment of "requirements."

This notice preserves the fact and content of the filing for the official record.

Respectfully,
/s/ Ash Le' Penn

From: **Milne David** <DAVID.MILNE@odhs.oregon.gov>
Date: Wed, Oct 15, 2025 at 11:20 AM
To: ashlepenn.ap3@gmail.com <ashlepenn.ap3@gmail.com>
Cc: Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>

Hi AshLe,

Please find attached the current Safety Plan. During our phone conversation you said you had not received a copy of the Safety Plan

nor the case records you had requested.

It appears the CPS worker Ashley Crafton did in fact send you a copy of the safety Plan on 10/1/2025 and instructions on how to attain

the records regarding this case.

I am forwarding you Ashley's email to you as it appears you must have overlooked it.

Cheers Dave Milne

From: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Sent: Wednesday, October 15, 2025 11:11 AM
To: Milne David <DAVID.MILNE@odhs.oregon.gov>
Subject: FW: In The Matter of Al-mira Davis

From: CRAFTON Ashley L
Sent: Wednesday, October 1, 2025 10:41 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Wed, Oct 15, 2025 at 1:02 PM
To: Milne David <DAVID.MILNE@odhs.oregon.gov>

Mr. Milne,

My daughter was taken on September 6, 2025. During a shelter hearing on September 8, 2025 your agents relayed to the court that I REFUSED a safety plan that you acknowledge was sent to me on October 1, 2025. I never said I had never received the safety plan - please stop misconstruing my words. What I said was that it is perjury to have asserted to the court that I had refused such safety plan as that would be impossible since you are aware it was sent to me nearly a month after her removal.

I'd appreciate it if you approached me with honesty and stop trying to posit that somehow I have misrepresented or misconstrued something. I'm sure you're aware - as you were notified at the start of the call that the call was recorded yesterday. And so, I never said I'd never gotten a safety plan. Again, DHS perjured themselves by telling the court during the shelter hearing that I'd refused it. Please tell me how I could have possibly refused something on 9/8/25 that wasn't presented to me until 10/1/25.

As to other matters not involving DHS' continued dishonesty and your clearly trying to perpetuate that dishonesty by telling me that I was mistaken when I was not, I've sent you an invoice and I've also asked for you to approach your central office about these very matters.

Instead of approaching me with extraneous communications about something that isn't true, is it possible you might have something of substance to posit related to that invoice or the notification to your central office?

I'll look forward to a meaningful response. And please look out for my written tort claim notice and demand.

Regards,

Ash Le' Penn

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, Oct 24, 2025 at 7:42 AM
To: <richard.e.moellmer@ojd.state.or.us>
Cc: Kimberly A. Beck <kimberly.a.beck@ojd.state.or.us>, <CountyCounsel@washingtoncountyor.gov>, Milne David <DAVID.MILNE@odhs.oregon.gov>

Dear Mr. Moellmer et al.,

NOTICE OF SPECIAL APPEARANCE

This communication constitutes a special appearance made solely for the purpose of challenging the court's jurisdiction and objecting to void proceedings. Nothing contained herein shall be construed as a general appearance, consent to jurisdiction, or acquiescence to the court's authority over me. I explicitly reserve all objections to personal jurisdiction and maintain that the court lacks authority to proceed in the absence of proper service of summons and petition as required by Oregon law. This communication is an extension of my initial special appearance filing that was improperly rejected by the clerk's office on September 8, 2025, for which Ms. Beck responded to.

I am writing in response to an email from Juvenile Case Processing Clerk, Juvenile Department Lead, Kimberly Beck, dated September 9, 2025, in which she asserted that my "personal appearance was required" at the September 8th shelter hearing and that my written filing did "not satisfy court requirements" without specifying what requirements were not satisfied.

I acknowledge that this written communication comes several days after Ms. Beck's initial email, however, this timing reflects my reasonable expectation that, upon my filing of a second motion which explicitly notified the court of the complete absence of personal jurisdiction due to a total lack of service of summons and petition, the court would cease further proceedings affecting my parental rights until proper jurisdiction could be established. Instead, the court has proceeded with multiple hearings - including a shelter hearing and status conference - and has stated on the record during a recent status conference that the failure to serve me with summons and petition "doesn't matter" and would not prevent the court from continuing to act violating the very tenets that vest the court with its authority.

This communication is to formally object to the assertion that it doesn't matter whether I've been served, that my physical in-court presence was required and that my filing of special appearances somehow did not meet court requirements which are legally and factually untenable. I intend to bring to your attention the profound jurisdictional and due process violations that have occurred in this matter.

JURISDICTIONAL CHALLENGE

The court's authority to proceed in a juvenile dependency case is not discretionary; it is strictly defined by statute. Under Oregon Revised Statutes Chapter 419B, jurisdiction over a parent attaches only upon the issuance and lawful service of a summons and petition. Specifically:

ORS 419B.838 mandates the requirements for proper service of a summons.
ORS 419B.815 establishes jurisdictional prerequisites, stating: "A court may make an order establishing jurisdiction under ORS 419B.100 **only** after service of summons and a true copy of the petition..."
ORS 419B.848(3) provides that "All papers requiring service, may be transmitted from any place by telegraph, facsimile or electronic mail."

I have received neither a summons nor a petition providing me with constitutionally and legislatively sufficient notice of the substance and pendency of this action. The only document provided was a "Notice of Protective Custody" pamphlet, which is not a substitute for a summons. Without proper service, the court had no authority to compel my personal presence nor to proceed with any hearings affecting my rights in any proceedings, to include, now, all the proceedings which have occurred to date.

While ORS 419B.836 provides a "saving clause" for *minor defects* in a summons, it does not excuse a *complete and total absence of service*. This statutory clause cannot cure a jurisdictional and constitutional void created by a total failure to issue and serve a summons and petition in the first instance. Furthermore, ORS 419B.839 states that a summons *may* be issued to require a parent's physical presence in court, confirming that such compulsion is not automatic and must be predicated on a validly issued and served summons. Without satisfying any of these statutory conditions precedent, the state appears to have proceeded with a juvenile dependency shelter hearing and status conference that it had no authority to conduct, both entirely without jurisdiction and with the court's acknowledgment of such a defect being made on the record in the latter of the two hearings. Meanwhile, my daughter's whereabouts have been concealed from me since before any valid court order was entered, dating back to September 6, 2025 (going on nearly two months), and my contact with her has been restricted with absolutely no legal basis as to why.

SPECIAL APPEARANCE AND DENIAL OF ACCESS TO COURTS
In response to the clerk's claim that I 'failed to appear,' I assert that I did make a lawful special appearance to contest the tribunal's jurisdiction while upholding my parental rights. My written submission constitutes a valid form of appearance as per Oregon law when contesting jurisdiction. Unfortunately, I was barred from court as the juvenile clerk's office declined to accept my submission.

Initially, I was informed that I could not file anything; this statement later changed to indicate that any filing must occur in person. Such statements contravene juvenile dependency law and civil regulations in Oregon and are unjustifiable. No legal grounds were given for rejecting my first special appearance or for claiming that only an in-person submission or appearance would be acceptable.

According to ORS 419B.851, the juvenile clerk is mandated to accept and file submissions; this is a ministerial action, not a discretionary one. The refusal to accept my filing unlawfully obstructed my right to access the court and breached my First Amendment right to petition the government, as well as my statutory right to participate in custody-related proceedings for my child.

The clerk's initial rejection of my filing on September 8, 2025, which was based solely on ORS 419B statutes pertaining to juvenile dependency and later acceptance of a second, identical filing for tribunal consideration, illustrates that the first denial was arbitrary and discriminatory. The disparate handling of identically filed special appearances—where the first referenced only juvenile dependency statutes and the second, a motion to dismiss, was rejected solely because it did not specify those statutes—indicates that the rejection was not due to a legitimate procedural issue but rather an improper denial of my right to address fundamental jurisdictional matters.

ORS 419B.851 states:

> (5) The filing of any papers with the court must be made by filing them with the clerk of the court or the person exercising the duties of that office. The clerk or the person exercising the duties of that office shall indorse the time of day, day of the month, month and year upon the paper. The clerk or person exercising the duties of that office is not required to receive any paper for filing unless:
>
> (a) The contents of the paper are legible; and

(b) All of the following are legibly indorsed on the front of the paper:

(A) The name of the court;

(B) The title of the cause and the paper;

(C) The names of the parties; and

(D) If there is one, the name of the attorney for the parties requesting filing.

My initial filing satisfied all statutory requirements and should have been accepted. The court's rejection of my second filing, solely on the basis that the Oregon Rules of Civil Procedure do not apply to the first filing— which properly referenced juvenile dependency statutes— constitutes a denial of access. This improper dismissal of a legitimate challenge to jurisdiction, coupled with an actual absence of jurisdiction, renders the subsequent proceedings invalid from the outset.

FILING REQUIREMENTS ANALYSIS

Ms. Beck's claim that my submission failed to satisfy court standards is without merit. This communication is not a request for legal advice but a demand that the juvenile dependency department and Oregon DHS comply with applicable laws and constitutional rights. I request clear legal justification for deeming my original filing insufficient. In the absence of a specific defect, the ruling of insufficiency appears arbitrary, especially since the juvenile department accepted my second submission and forwarded it to the court for consideration. Any assertion that the rejection of my second special appearance is valid under the Oregon Rules of Civil Procedure is unfounded, as my initial special appearance did not reference the ORCP but rather juvenile dependency statutes. My filing included the court's name, case title, and party names, was clear, and was submitted for the record. It met all requirements, and its rejection was unwarranted.

VOID PROCEEDINGS AND JURISDICTIONAL DEFECTS

The jurisdictional defects are exacerbated by the fact that any evidence or testimony given at the invalid September 8 and most recent status conference cannot legally support ongoing proceedings. Records of text messages indicate that DHS deemed me suitable for placement and planned to return my daughter to me on the evening of Saturday, September 6. This decision was suddenly overturned based on a contentious hearsay statement. Such evidence, presented in a jurisdictionally flawed proceeding, holds no legal validity. I was not permitted to challenge or cross-examine this evidence as the court dismissed my filing and denied my request for remote participation. This obstruction of access to the courts, coupled with the lack of jurisdiction, renders any findings or orders from that hearing void from the outset.

DOCUMENTATION

Accordingly, I formally demand that the Juvenile Department provide the following:

- Proof of service already on file, complete with the date, method/manner of service, a sworn statement from the serving individual, and the location and time of service.
- Clarification of what the court has relied on to establish that jurisdiction was properly acquired over me in the absence of a served summons or proof of service.
- All documentation (including any transcripts), evidence, or testimony presented at the void September 8 hearing, while noting my objection that such evidence cannot form a lawful basis for continued proceedings.
- Immediate written disclosure of my daughter Almira's current location and placement information, which continues to be unlawfully concealed and contact with her restricted without any lawful basis.

Please acknowledge receipt of this communication as a special appearance for the sole purpose of challenging the court's jurisdiction and as a renewal of my first filing, without consenting or acquiescing to the court's authority. Kindly ensure all filings and objections are properly accepted and docketed. Further, I respectfully request that proceedings related to the subject matter be immediately dismissed pending resolution of this jurisdictional challenge. Please confirm preservation of all records, filings, and communications related to this matter.

NOTICE OF CLAIM UNDER OREGON TORT CLAIMS ACT (ORS 30.275)
TO: Washington County, Oregon Department of Human Services and the State of Oregon
CLAIMANT: AshLe' Penn, Natural Mother of Almira Davis

Initial Violations: September 6, 2025, and ongoing
Location: Washington County Circuit Court, Juvenile Department

CIRCUMSTANCES:
Washington County employees and other state actors have violated the claimant's constitutional and statutory rights by:

Malfeasance (wrongful or unlawful act)

- The court proceeding without jurisdiction due to failure of proper summons and petition service is malfeasance by the court or state actors, because they affirmatively acted despite lacking lawful authority.
- The clerk’s office rejecting proper filings and obstructing access to the court could also be construed as malfeasance, as this is an unlawful misuse of official power violating constitutional rights.

Nonfeasance (failure to act when duty exists)

- The failure to serve summons and petition as required by statute is nonfeasance—a refusal or omission to perform the duty to properly notify and provide due process.
- Concealment of my child's location and failure to provide timely information amount to nonfeasance, a refusal to act where there is a legal duty to disclose.

Misfeasance (improper or negligent performance of duty)

- The court’s continuation of hearings despite knowledge of jurisdictional defects could be viewed as misfeasance—i.e., conduct that is legally authorized but performed improperly, negligently or in disregard of legal standards.
- Arbitrary rejection then acceptance of filings under inconsistent grounds may be misfeasance, indicating improper exercise of clerical or ministerial duty.

(Note: Additional claims may be pursued against other state actors for related conduct outside the court's direct purview.)

EXTENT OF INJURY:

Claimant has suffered injuries that are not only monetary but deeply personal and constitutional, encompassing harm to liberty, family integrity, and fundamental due process. All of these are recognized as compensable under Oregon’s legal framework.

Economic Damages

Legal costs and expenses incurred in responding to unlawful proceedings.

Lost income or opportunity costs due to time spent addressing the litigation.

Costs of securing alternative legal representation or support services.

Noneconomic Damages

Emotional distress, anxiety, and psychological trauma caused by unlawful separation from your child.

Loss of parental companionship, care, comfort, and familial association.

Harm from deprivation of constitutional rights, such as due process, equal protection, and First Amendment rights.

Ongoing stress and uncertainty related to the concealment of the Claimant's child's location and contact restrictions.

Damages for infringement on fundamental parental rights and liberty interests protected under the U.S. and Oregon constitutions.

Constitutional and Statutory Basis

Oregon courts recognize the severity of emotional and parental relationship harm in due process and tort claims.

Recent Oregon case law has abolished caps on noneconomic damages in personal injury claims, opening the door to substantial recovery for emotional and constitutional injuries.

Claimant may also pursue punitive damages for willful or malicious violations of rights, aiming to both compensate and deter further misconduct.

AMOUNT OF DAMAGES:

To be determined, but including compensatory damages for emotional distress, loss of parental relationship, economic losses, and punitive damages for deliberate constitutional violations. This notice is provided pursuant to ORS 30.275 as a prerequisite to filing a civil action. This notice preserves all rights to seek additional damages as they become ascertainable.

RESERVATION OF RIGHTS

Additionally, despite repeated inquiries, I have not been officially informed where my daughter Al-mira is currently placed, nor have I received any documentation or order authorizing her removal or restricting my contact. This continued concealment raises grave due process concerns and interference with parental rights that is actionable under 42 U.S.C. § 1983.

Please be advised that you are hereby instructed and obligated to preserve all documentation, communications, records, transcripts, evidence, and electronically stored information (ESI) related to this matter, including but not limited to all filings, hearing records, motions, correspondence, electronic communications, and any data concerning the service of summons and petition, jurisdictional challenges, and court proceedings from the inception of this case through its resolution.

Any routine or other destruction, alteration, deletion, or disposal of such materials—whether physical or electronic—or any attempts to suppress, conceal, or withhold such evidence would constitute spoliation and may lead to sanctions, adverse inferences, or other legal consequences.

This preservation obligation extends to all relevant data stored in court, government agency records, clerk's office files, electronic mail systems, text messages, case management systems, and all backup or archived materials.

You are respectfully requested to promptly confirm receipt of this preservation notice and confirm that full preservation measures have been implemented.

In closing, I formally object, through this subsequent special appearance, to any reliance on an alleged "failure to appear." I did not waive jurisdictional objections, and I expressly appeared specially by filings improperly denied by the Juvenile Clerk. Until proper summons and service are made, and even then, this court has acted in the absence of its jurisdictional authority to have compelled any physical appearance or proceed further in issuing orders affecting my legal rights. Please ensure this response is entered into the record. I reserve all rights and objections.
Respectfully,

/s/ AshLe' Penn Without Prejudice
Appearing Specially, Natural Mother

CERTIFICATE OF SERVICE
I hereby certify that a true and correct copy of the foregoing was served upon all parties by electronic mail on this 20th day of October, 2025.

- Washington County Trial Court Administrator - Richard Moellmer

  richard.e.moellmer@ojd.state.or.us

- Juvenile Dependency Clerk - Kimberly Beck

  kimberly.a.beck@ojd.state.or.us

- County Counsel - Courtney Duke Driesson

  CountyCounsel@washingtoncountyor.gov

- Oregon DHS Permanency Worker - David Milne

  DAVID.MILNE@odhs.oregon.gov

/s/ AshLe' Penn Without Prejudice

On Tue, Sep 9, 2025 at 3:09 PM Kimberly A. Beck <Kimberly.A.Beck@ojd.state.or.us> wrote:

7 attachments

- **In the matter of almira davi.pdf** 122K
- **crafton.pdf** 68K
- **Court Attorney Application 4.2021.pdf** 265K
- **Safety Plan - Davis.pdf** 717K
- **1536.pdf** 1608K
- **orcp21.pdf** 237K
- **mothers declaration.pdf** 274K

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Jul 14, 2026 at 5:11 PM
To: Brittney Horsley <bhorsleycpht@gmail.com>

Forwarded Conversation

Subject: In The Matter of Al-mira Davis

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
To: <juvenileweb@washingtoncountyor.gov>

To The Juvenile Court,

I am writing to confirm the substance of our recent telephone conversation and to formally submit a filing in the above-referenced juvenile case involving my daughter.

During our call, I was informed that I am not permitted to file documents in this case and that filings must be made in person (both of which could not simultaneously be valid). I explained that I am unable to attend in person at this time. Moreover, I informed the clerk, before being prevented access to the courts through her ending the conversation, that no proper summons or signed court protective order has been issued or served on me. I attempted to inform her that I am appearing specially through my filings.

In light of this, I am submitting herewith the following filing for your review and inclusion in the case file:

Objection to Referee Jurisdiction

Motion to Participate by Written Filing

Objection to Continued Custody

Demand for Immediate Placement with Natural Mother

Under Oregon law, “any person may file a petition in the juvenile court alleging that a child named therein is within the jurisdiction of the court” (ORS 419B.809(1)). This statute establishes that the court must accept filings from natural parents regardless of physical appearance and that participation through timely written filings is permitted. Denying this right or requiring in-person filing only conflicts with the statutory right to access the court and be heard in juvenile proceedings.

Please treat this email and the attached filing as my formal special appearance and request that the Court docket and consider the matters raised herein, notwithstanding any informal restrictions communicated by the clerk’s office.

Kindly confirm receipt of this filing at your earliest convenience. I reserve all rights to pursue any further necessary legal action should my lawful right to file and participate be improperly denied.

Thank you for your attention to this important matter.

Respectfully,

AshLe' Penn

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:47 PM
To: <kat_sanchez@washingtoncountyor.gov>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 3:34 PM
To: <Heather.KITTO@odhs.oregon.gov>

Ms. Kitto,

I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing. I'm communicating this with you for the record.

We will be in touch.

Regards,
AahLe' Penn

---------- Forwarded message ---------
From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
Subject: In The Matter of Al-mira Davis
To: <juvenileweb@washingtoncountyor.gov>

From: **KITTO Heather** <Heather.KITTO@odhs.oregon.gov>
Date: Mon, Sep 8, 2025 at 4:07 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>, CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>

Hello, I am including your current worker and supervisor so that you can work directly with them. I was the on call supervisor this weekend, but won't be involved with your case moving forward.

Sincerely,

Heather Kitto

ODHS CW Supervisor Beaverton

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Monday, September 8, 2025 3:34 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>
Subject: Fwd: In The Matter of Al-mira Davis

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

From: **CRAFTON Ashley L** <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Date: Mon, Sep 8, 2025 at 4:55 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>, AshLe' Penn <ashlepenn.ap3@gmail.com>, imahoney@mpdlaw.com <imahoney@mpdlaw.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ashle,

I am your assigned caseworker. I have been trying to contact you since the end of July. You were notified of court. You did not make yourself available to have any discussions with. All parents are required to show in person unless pre-approved from the judge. I am copying your attorney on this email. I am not an attorney, and she may be able to have a more in depth conversation regarding appearances and legal matters. I would like to schedule a time to discuss assessments I currently have open.

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

From: **Ireland Mahoney** <imahoney@mpdlaw.com>
Date: Mon, Sep 8, 2025 at 5:24 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Hi Ashle',

I am the attorney who was assigned to represent you in this dependency matter. I'd love to chat when you get the chance, but before I do, you must fill out the paperwork to get a court appointed attorney. I can try to get the paperwork and send it over by email for you to sign or you can ask DHS to send you the CAA paperwork.

I hope to hear from you soon.

Ireland Mahoney
5037267000

From: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Sent: Monday, September 8, 2025 4:55:38 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>; AshLe' Penn <ashlepenn.ap3@gmail.com>; Ireland Mahoney <imahoney@mpdlaw.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Tue, Sep 9, 2025 at 6:44 AM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Cc: KITTO Heather <heather.kitto@odhs.oregon.gov>, imahoney@mpdlaw.com <imahoney@mpdlaw.com>, Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ms. Crafton,

Your email dated September 8, 2025, at 4:55 PM, states you have “been trying to contact me since the end of July” and that I “did not make myself available.” Both assertions are false and misdirect blame for DHS’s failures onto me. I received no communication of any kind—call, email, text, voicemail, letter, or visit—from you or your office prior to the events of this weekend. My phone and email have not changed, remain active, and have been used successfully by others, including DHS supervisor Heather Kitto and her colleagues, who reached me promptly during this same timeframe by simply making the effort to do so.

As you know, DHS Child Welfare Manual §4, “Initial Contact With the Family” (p. 262) requires all attempted contacts with children and parents to be documented in the case file, with date, time, method, and outcome. Consistent with your own agency rules, I hereby demand a written, itemized accounting of every alleged attempt to contact me since July 2025, consistent with your claim.

Your further assertion that “all parents are required to show in person unless pre-approved from the judge” is equally unsupported. The only document I received was a “Notice of Protective Custody” pamphlet, which is neither a summons nor a petition. It contained no directive for mandatory in-person appearance.

ORS 419B.838 requires proper service of summons or notice in dependency cases, and ORS 419B.848 makes proof of service a jurisdictional prerequisite. Importantly, ORS 419B.815 establishes that “A court may make an order establishing jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition,” and mandates that a summons require personal appearance or written answer to the petition. Without proper service and proof in the record, the court lacked jurisdiction to proceed with the shelter hearing. The “Notice of Protective Custody” I received does not meet ORS 419B.815’s statutory summons requirements as it lacked any petition or proper summons and omitted notification of personal appearance obligations.

I attempted to appear specially through a written filing to make such challenges and objections, but that filing was rejected by juvenile department staff, who initially told me I could not submit anything in the case and that, contrarily, filings could only be made in person. The juvenile code guarantees my right to participate and be heard. I was thereby denied access to the proceedings. The hearing likely proceeded in my absence, without jurisdiction, without proper notice or summons, and without my being informed of my daughter’s location.

Finally, I must address the supervisor’s message reporting that hospital staff felt I was “escalating” when I called seeking information. Those calls were made only because DHS gave me conflicting information as to whether my daughter was even at the hospital. Under those circumstances, my persistence was not “escalation” but the only means available to verify my daughter’s location and safety. Attempts to recast a parent’s urgent inquiries as misconduct are improper and retaliatory.

On these facts:

DHS has failed to comply with ORS 419B.838, ORS 419B.848, and ORS 419B.815;

DHS has not produced required documentation of contact attempts per its own Child Welfare Manual;

I was obstructed from filing and participating in violation of due process;

My child has been removed without lawful notice, jurisdiction, or disclosure of placement.

Accordingly, I demand:

A written, itemized accounting of all alleged contact attempts since July 2025;

Clarification of DHS's official notification and appearance practices;

Immediate disclosure of my daughter's placement and status;

Formal acknowledgment that I seek a rehearing and review due to these procedural defects and jurisdictional failures.

The removal report

The petition

Regards,
AshLe' Penn

From: **Kat Sanchez** <Kat_Sanchez@washingtoncountyor.gov>
Date: Tue, Sep 9, 2025 at 1:03 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Good afternoon,

I am not sure what your email is in regards as it was sent blank.

Please let me know if you need help being connected to the appropriate staff within the juvenile department.

Thank you,

Kat

CAUTION: This email originated from outside the County. Exercise caution when opening attachments or clicking links from unknown senders. Always follow the guidelines defined in the KnowBe4 training when opening email received from external sources. Contact the ITS Service Desk if you have any questions.

INFO: Washington County email address has changed from @co.washington.or.us to @washingtoncountyor.gov. Please update my contact information.

From: **Kimberly A. Beck** <Kimberly.A.Beck@ojd.state.or.us>
Date: Tue, Sep 9, 2025 at 3:09 PM
To: ashlepenn.ap3@gmail.com <ashlepenn.ap3@gmail.com>

Good afternoon, Ms. Penn,

Your personal appearance was required for the shelter hearing on September 8, 2025, and you failed to appear. Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements.

If you have any further concerns or wish to discuss your situation in more detail, you are welcome to contact our Trial Court Administrator, Richard Moellmer. He can be reached by phone at 503.846.8888 ext.70568 or by email richard.e.moellmer@ojd.state.or.us

Thank you,

Kimberly Beck

Juvenile Case Processing Clerk*
Juvenile Department Lead

Washington County Circuit Court

(503) 846-8888 ext. 70621
*Adoptions, Guardianships, Emancipations, Back-Up Courtroom Clerk for Judge Goldman

NOTICE: *This communication may contain privileged, confidential, or other information exempt from disclosure under applicable law. If you received it in error, please advise me by reply email and immediately delete the message and any attachments without further reviewing, copying, or disclosing the contents.*

From: JUVENILE Web <JUVENILEweb@washingtoncountyor.gov>
Sent: Tuesday, September 9, 2025 9:03 AM
To: WSH Juvenile Admin Staff <wsh.juvenile.admin.staff@ojd.state.or.us>
Subject: FW: [EXTERNAL] In The Matter of Al-mira Davis

WARNING: This email is from outside of the Oregon Judicial Department. If links or files in this email are unexpected, even if from an email address you trust, please call the sender on the phone and verify them before you click.

Forwarding on to you for possible assistance….

Thanx,

Lorena L.

x4453

CAUTION: This email originated from outside the County. Exercise caution when opening attachments or clicking links from unknown senders. Always follow the guidelines defined in the KnowBe4 training when opening email received from external sources. Contact the ITS Service Desk if you have any questions.

From: **CRAFTON Ashley L** <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Date: Tue, Sep 9, 2025 at 5:00 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: imahoney@mpdlaw.com <imahoney@mpdlaw.com>, Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ms. Penn,

Thank you for your email. Some of your questions are regarding legal matters, please speak to your attorney regarding these.

I do need to meet with you regarding the three open calls I have and would like to schedule a time to meet with you to do that. I am available 12pm-5pm on Friday 9/12/2025, Tuesday 9/16/2025 9am-4pm, Wednesday 9/17/2025 8am-5pm or Friday 9/19/2025 9am-4pm. These times may very as things come up so please respond as soon as possible letting me know what day and time works for you.

Thank you

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Monday, September 8, 2025 3:34 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>
Subject: In The Matter of Al-mira Davis

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

Ms. Kitto,

I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing. I'm communicating this with you for the record.

We will be in touch.

Regards,

AahLe' Penn

---------- Forwarded message ---------
From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
Subject: In The Matter of Al-mira Davis
To: <juvenileweb@washingtoncountyor.gov>

From: **Ireland Mahoney** <imahoney@mpdlaw.com>
Date: Thu, Sep 11, 2025 at 9:09 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Hi AshLe',

I just noticed that I had a typo in my last message to yo. Please see the correct office number in my signature below.

I noticed you haven't filled out the court appointed paperwork yet, and I am not able to work on your case until you do. However, if you have any questions about how to do that, I would be happy to help you in any way I can.

I hope to talk soon.

Best,

Ireland Mahoney (she/her) | Attorney, Juvenile Unit

Metropolitan Public Defender

400 E. Main St., Suite 210

Hillsboro, OR 97123

Office: 503-726-7900

Legal Assistant Mollie McAdams: mmcadams@mpdlaw.com.

Confidentiality: This e-mail transmission may contain confidential and/or privileged information. The information contained herein is intended for the addressee only. If you are not the addressee, please do not review, disclose, copy or distribute this transmission. If you have received this transmission in error, please contact the sender immediately.

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, Sep 12, 2025 at 3:40 AM
To: Barry Washington <barrywashington.bw@gmail.com>

Ms. Beck,

I acknowledge receipt of your email dated September 9, 2025, asserting that my "personal appearance was required" at the September 8 shelter hearing and that my written filing did "not satisfy court requirements".

Under ORS 419B.838 and ORS 419B.848, jurisdiction in a juvenile dependency proceeding attaches only upon the issuance and lawful service of a summons together with the petition upon the parties. Even the savings clause of this chapter (ORS 419B.836) does not excuse absolute absence of service, only minor defects in service which do not act to violate the due process rights of the party against whom "summons was issued". The statute establishes that only parties who would have received the petition and therefore would have knowledge of the substance and pendency of the action, as is required, would or could be compelled to present in-person.

I have received neither a summons nor a petition providing me Constitutionally and legislatively sufficient notice, yet my daughter's whereabouts have been concealed and the state appears to have proceeded with a juvenile dependency shelter hearing that it had no authority to proceed with in the absence of proper, procedurally compliant and substantive interests observant requirements. It is ORS 419B.839 which grants the tribunal the authority to compel an in-person presence, but only if necessary, by stating: "Summons may be issued requiring the appearance of any person whose presence the court deems necessary."

Notwithstanding the fact that I was not afforded constitutionally sufficient or statutorily proper service of summons and petition, I am unable to find any requirement that I would have been aware of that mandated that only a physical in-person presence would suffice.

Although I may not have appeared in person - I did, however, make a special appearance to challenge the jurisdiction of the tribunal and exercise my parental rights but was denied the ability to do so - without being provided under what authority this requirement comes from. Despite that proper notice and service of summons was never effectuated, I did attempt to appear, specially, by filing written objections challenging referee jurisdiction and objecting to the court's neglecting to ensure service was complete on the record.

Unfortunately, I was denied filing access, and thereby denied access to the court, by the juvenile clerk's office, which refused to docket my appearance by refusing to accept my filing and for which the clerk's office provided no lawful basis for prohibiting either remote or written filings in lieu of a personal appearance. In regard to the clerk's refusal to accept my filing, there is legislatively established authority supporting my position that the clerk of a court does not have the authority to deny a filing if it meets statutory requirements, as I'm confident the filing I submitted did just that.

Proceedings that move forward absent proof of service are void for lack of jurisdiction. See ORS 419B.848(3)(a) providing: "All papers requiring service, may be transmitted from any place by telegraph, facsimile or electronic mail."

Respectfully, your statement that my filings did not meet court requirements is legally unsustainable. Are you able to identify the specific defects in my filing making it unsatisfactory to be accepted and to carry out its purpose so that I might be able to correct the issue? Please don't construe this as a request for legal advice, it is not. Moreso, this is a request that I be provided with statutory authority supporting the assertion that my filings did not satisfy court requirements. Without being able to identify exactly why my filing did not "satisfy court requirements", I'd ask how my filing was determined insufficient to carry out its purpose? So, again, this is not a request for legal advice but rather a showing that public officials are acting in accordance with the law.

I believe that under ORS 419B.851, "The filing of any papers with the court must be made by filing them with the clerk of the court or the person exercising the duties of that office. The clerk or the person exercising the duties of that office shall indorse the time of day, day of the month, month and year upon the paper." So long as the filing contains: the name of the court; the title of the cause and the paper; The names of the parties; and since there is not one, the name of the attorney for the parties requesting filing should not have been required.

In observance of this statute, my filing absolutely satisfied court requirements and it would appear that a clerk's indorsement of such a filing is ministerial and not discretionary - requiring the acceptance of my filing notifying the court of my special appearance on the record. Overall, the court has proceeded in this matter lacking authority to do so. If you can provide clarity of under what authority, exactly, this matter is proceeding under - I would be grateful if you could provide it to me.

Further, I must address DHS's conduct in this matter. Initially, DHS contacted me and stated they were prepared to release Almira to me. When I sent my uncle to retrieve her (due to an outstanding warrant preventing my personal appearance), DHS refused this lawful exercise of my parental right to receive family assistance. Approximately 10 minutes later, DHS claimed they had received "new information" that Almira stated she would "kill herself" if returned to my home.

When I spoke with Almira directly about one hour later, she explicitly denied making any such statement and expressed her desire to come home. DHS immediately terminated this call and has prevented all subsequent contact between myself and my daughter. This appears to constitute fabrication of evidence to justify continued detention, followed by silencing of the witness who contradicted their claims.

DEMANDS FOR PRESERVATION OF DOCUMENTS/DOCUMENTATION

Accordingly, I now formally demand that the Juvenile Department provide:

1. Proof of service already occurred complete with the date, method/manner of service, sworn statement from the individual who served the documents as well as the location and time of service;
2. Clarification of what the court has now relied on to establish that jurisdiction has been properly acquired over me in the absence of service of summons or proof of service;
3. Documentation of the alleged "suicide threat" including the identity of the person who allegedly heard this statement, the exact time and circumstances, and any recordings or contemporaneous notes;
4. Justification for terminating my phone contact with Almira and preventing all subsequent communication;
5. Current location and placement information for Almira, which continues to be unlawfully concealed.

TORT CLAIM NOTICE

NOTICE OF CLAIM UNDER OREGON TORT CLAIMS ACT (ORS 30.275)

TO: Washington County and the State of Oregon

CLAIMANT: AshLe' Penn, Natural Mother of Almira Davis

DATE, TIME AND LOCATION:

- Initial violations: September 5, 2025 and ongoing

- Location: Washington County Circuit Court Juvenile Department

Washington County employees and other state actors have violated claimant's constitutional rights by:

1. Proceeding with court hearings without jurisdiction due to failure to serve summons and petition
2. Refusing to accept proper legal filings, denying access to courts
3. Relying on evidence presented in void proceedings to justify continued child detention
4. Violating procedural due process rights and substantive parental rights
5. Concealing child's location and placement information

(Note: Additional claims may be pursued against other state actors for related conduct outside the court's direct purview)

Rights of Action:

- Emotional distress from unlawful separation from minor child
- Loss of parental companionship and constitutional parent-child relationship
- Ongoing constitutional violations and denial of due process
- Economic losses related to legal proceedings and lost time
- punitive damages for deliberate constitutional violations

This notice is provided pursuant to ORS 30.275 as a prerequisite to filing civil action. This notice preserves all rights to seek additional damages as they become ascertainable.

RESERVATION OF RIGHTS

Additionally, despite repeated inquiries, I have not been informed where my daughter Almira is currently placed, nor have I received any documentation or order authorizing her removal or restricting my contact. This continued concealment raises grave due process concerns and interference with parental rights that is actionable under 42 U.S.C. § 1983.

I formally object to any reliance on alleged "failure to appear." I did not waive jurisdictional objections, and I expressly appeared specially by filing. Until proper summons and service are made, the court lacks authority to compel my physical appearance or proceed further.

Please ensure this response is entered into the record. I reserve all rights and objections.

Respectfully,

/s/AshLe' Penn

Natural Mother

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, Sep 12, 2025 at 3:51 AM
To: Barry Washington <barrywashington.bw@gmail.com>

Ms. Crafton,

Your response dated September 12, 2025, fails to address any of the substantive legal and procedural violations I raised in my previous correspondence. Your instruction to "speak to your attorney regarding these" is in appropriate deflection of your statutory obligations and does not excuse your agency's failures to comply with state law and your own policies.

OUTSTANDING DEMANDS REQUIRING IMMEDIATE RESPONSE

You have not responded to my specific demands, which I hereby reiterate:

1. **Written, itemized accounting of all alleged contact attempts since July 2025** - Your claim that you were "trying to contact me since the end of July" requires documentation per DHS Child Welfare Manual §4. Produce the records or retract the statement.
2. **Immediate disclosure of Almira's current placement and status** - Concealment of my daughter's location violates my fundamental parental rights and due process.
3. **The removal report and petition** - I am entitled to these documents under ORS 419B.838 and due process requirements.
4. **Clarification of your authority to proceed** - Given the jurisdictional void in the underlying court proceedings.

JURISDICTIONAL DEFECTS PRECLUDE ADMINISTRATIVE ACTION

Your request to meet regarding "three open calls" ignores fundamental legal problems with DHS's authority in this matter. Once DHS invoked court jurisdiction by filing proceedings, your agency shifted from administrative investigation to judicial process. That judicial process is void due to failure to serve summons and petition as required under ORS 419B.838, ORS 419B.815, and ORS 419B.848.

You cannot now retreat to administrative authority when the judicial proceedings have failed. DHS cannot use administrative investigation powers to justify or continue actions taken through void court proceedings. Any "open calls" must be addressed through proper legal process, not meetings designed to bypass jurisdictional requirements.

FABRICATED EVIDENCE AND WITNESS TAMPERING

I must address DHS's conduct regarding the alleged "suicide threat" that your agency used to reverse its initial determination that Almira should be released to me. As documented:

1. **Initial determination**: DHS contacted me stating they were prepared to release Almira to my care
2. **Fabricated reversal**: Approximately 10 minutes after I exercised my parental right to send family assistance (my uncle) to retrieve her, your supervisor claimed Almira had stated she would "kill herself" if returned to me
3. **Child's contradiction**: When I spoke with Almira directly about one hour later, she explicitly denied making any such statement and expressed her desire to come home
4. **Silencing the witness**: DHS immediately terminated our call and has prevented all subsequent contact between myself and my daughter

This sequence constitutes fabrication of evidence to justify continued detention, followed by deliberate prevention of communication that would contradict your agency's false claims. Such conduct violates due process, interferes with parental rights, and potentially constitutes criminal conduct under ORS 162.085 (Official Misconduct).

THIS IS NOT REFUSAL TO COOPERATE

Let me be unequivocally clear: I am not refusing to cooperate with lawful process. I am exercising my constitutional and statutory rights to due process, proper notice, and lawful procedure. My insistence that DHS comply with state law and your own policies is not "uncooperative" behavior - it is the exercise of fundamental rights that cannot be penalized.

Any characterization of my rights-assertion as "uncooperative" or any punitive response to my exercise of constitutional rights would constitute unlawful retaliation. Parents cannot be punished for demanding that government agencies follow the law.

CONDITIONS FOR COOPERATION

I will gladly cooperate with DHS when your agency:

1. **Follows state law** - Complies with ORS 419B.838, ORS 419B.815, and ORS 419B.848 regarding proper service and jurisdictional requirements
2. **Follows your own policies** - Documents contact attempts per Child Welfare Manual requirements and provides required disclosure
3. **Operates within legal authority** - Establishes proper jurisdiction before compelling participation
4. **Ceases fabricating evidence** - Acknowledges and corrects the false "suicide threat" claim
5. **Respects parental rights** - Allows communication with Almira and discloses her placement

LEGAL COMPLIANCE IS NOT OPTIONAL

Your agency's failures include:

- Proceeding without proper court jurisdiction
- Fabricating evidence to justify child detention
- Preventing parent-child communication to maintain fabricated narrative
- Refusing to provide required documentation
- Attempting to compel participation through void proceedings

These violations cannot be cured by scheduling meetings or deflecting to non-existent counsel. They require acknowledgment, correction, and compliance with law.

DEMAND FOR IMMEDIATE ACTION

I demand immediate response to all outstanding requests for documentation and information. Your continued non-response will be documented as evidence of deliberate violation of statutory duties and constitutional rights.

I reserve all rights and remedies under state and federal law, including but not limited to claims under 42 U.S.C. § 1983 for deprivation of rights under color of state law.

Respectfully,

/s/ AshLe' Penn

Natural Mother of Almira Davis

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Thu, Sep 18, 2025 at 12:15 PM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>

> s. Crafton,
>
> Please find attached my formal response to your September 9, 2025 message. This correspondence addresses critical procedural and jurisdictional matters that require your direct response as the assigned caseworker.
>
> The attached letter outlines specific statutory obligations, documentation requirements, and factual discrepancies that must be resolved before any further meetings can be scheduled. These inquiries concern DHS's own mandatory compliance duties under Oregon law and are not requests for legal advice.
>
> I expect your written response within ten (10) business days of receipt, addressing each numbered section and subsection. The questions posed require straightforward, factual answers based on DHS policies, Oregon statutes, and the specific record of this case.
>
> Regards
> AshLe' Penn

From: **CRAFTON Ashley L** <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Date: Wed, Oct 1, 2025 at 10:40 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>, Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>

Dear Ms. Penn,

On September 8, 2025, the Oregon Department of Human Services – Child Welfare sought and was granted temporary custody of Al'Mira. You were informed of this hearing, however, did not attend. At this court proceeding, the court identified prospective counsel for you with the Metropolitan Public Defenders Office. In order for counsel to be appointed on your behalf, you must fill out the court appointed attorney paperwork. I have attached another copy for your review and submission to the court. These documents are required for the court to appoint your legal counsel in Al'Mira's case, and they must be submitted to the juvenile court.

Your options to submit paperwork is to print, complete, scan and email back to me so I can submit this OR, print, complete, and mail/hand deliver to the juvenile court.

If you privately retain counsel, please have them contact ODHS' attorney. Alternatively, you may also choose to represent yourself in these proceedings. If you choose to do so, you must inform our counsel.

If you have questions regarding the specifics of Al'Mira's legal case rather than the ongoing case planning and casework, ie: specific statutory questions, please contact legal counsel as I am unable to advise you.

As for the records request, that is to be directed to our records department, I have included their contact information below.

Washington County Juvenile Court

222 N. 1st Avenue

Hillsboro, Oregon 97124

(503) 846-4701

Metropolitan Public Defenders

400 E. Main St, Suite 210

Hillsboro, Oregon 97123

(503) 726-7900

Oregon Department of Justice – Child Advocacy and Protection (ODHS' Legal Counsel)

100 SW Market Street

Portland, Oregon 97201

(971) 673-1880

ODHS Public Records Unit

500 Summer St NE, E62

Salem, OR 97301

(503) 945-5617

dhs.recordsrequest@odhs.oregon.gov

I would really appreciate being able to work with you and to meet to discuss the calls of concern I received. Please let me know when you would be available to do this and how you would like to proceed.

Thank you,

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Thursday, September 18, 2025 12:16 PM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Subject: Re: In The Matter of Al-mira Davis

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

> s. Crafton,

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Tue, Oct 14, 2025 at 9:58 AM
To: <juvenileweb@washingtoncountyor.gov>, <DAVID.MILNE@odhs.oregon.gov>

Juvenile Clerk,

The attached filings are provided for record in *In re Almira Davis, Case No. 25JU04261.* Court staff previously stated that this filing "did not meet court requirements," yet no rule, statute, or written deficiency notice was provided.

The Clerk and Court Had a Non-Discretionary Duty to File and Consider Jurisdictional Pleadings
Under **ORS 7.020** and **UTCR 2.010(6)–(7) as well as under ORS 419B**, clerks must accept and file any paper presented for filing unless the document is so defective that it cannot be identified as belonging in the case. Even then, the reason for rejection must be specified in writing. No such written basis was provided.

Moreover, jurisdictional challenges under **ORCP 21 A(1)** implicate due process and are mandatory matters for judicial—not administrative—determination. The clerk has no authority to summarily determine a pleading's sufficiency or to deny filing based on a subjective assessment of "requirements."

This notice preserves the fact and content of the filing for the official record.

Respectfully,
/s/ Ash Le' Penn

From: **Milne David** <DAVID.MILNE@odhs.oregon.gov>
Date: Wed, Oct 15, 2025 at 11:20 AM
To: ashlepenn.ap3@gmail.com <ashlepenn.ap3@gmail.com>
Cc: Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>

Hi AshLe,

Please find attached the current Safety Plan. During our phone conversation you said you had not received a copy of the Safety Plan

nor the case records you had requested.

It appears the CPS worker Ashley Crafton did in fact send you a copy of the safety Plan on 10/1/2025 and instructions on how to attain

the records regarding this case.

I am forwarding you Ashley's email to you as it appears you must have overlooked it.

Cheers Dave Milne

From: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Sent: Wednesday, October 15, 2025 11:11 AM
To: Milne David <DAVID.MILNE@odhs.oregon.gov>
Subject: FW: In The Matter of Al-mira Davis

From: CRAFTON Ashley L
Sent: Wednesday, October 1, 2025 10:41 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Wed, Oct 15, 2025 at 1:02 PM
To: Milne David <DAVID.MILNE@odhs.oregon.gov>

Mr. Milne,

My daughter was taken on September 6, 2025. During a shelter hearing on September 8, 2025 your agents relayed to the court that I REFUSED a safety plan that you acknowledge was sent to me on October 1, 2025. I never said I had never received the safety plan - please stop misconstruing my words. What I said was that it is perjury to have asserted to the court that I had refused such safety plan as that would be impossible since you are aware it was sent to me nearly a month after her removal.

I'd appreciate it if you approached me with honesty and stop trying to posit that somehow I have misrepresented or misconstrued something. I'm sure you're aware - as you were notified at the start of the call that the call was recorded yesterday. And so, I never said I'd never gotten a safety plan. Again, DHS perjured themselves by telling the court during the shelter hearing that I'd refused it. Please tell me how I could have possibly refused something on 9/8/25 that wasn't presented to me until 10/1/25.

As to other matters not involving DHS' continued dishonesty and your clearly trying to perpetuate that dishonesty by telling me that I was mistaken when I was not, I've sent you an invoice and I've also asked for you to approach your central office about these very matters.

Instead of approaching me with extraneous communications about something that isn't true, is it possible you might have something of substance to posit related to that invoice or the notification to your central office?

I'll look forward to a meaningful response. And please look out for my written tort claim notice and demand.

Regards,

Ash Le' Penn

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, Oct 24, 2025 at 7:42 AM
To: <richard.e.moellmer@ojd.state.or.us>
Cc: Kimberly A. Beck <kimberly.a.beck@ojd.state.or.us>, <CountyCounsel@washingtoncountyor.gov>, Milne David <DAVID.MILNE@odhs.oregon.gov>

Dear Mr. Moellmer et al.,

NOTICE OF SPECIAL APPEARANCE

This communication constitutes a special appearance made solely for the purpose of challenging the court's jurisdiction and objecting to void proceedings. Nothing contained herein shall be construed as a general appearance, consent to jurisdiction, or acquiescence to the court's authority over me. I explicitly reserve all objections to personal jurisdiction and maintain that the court lacks authority to proceed in the absence of proper service of summons and petition as required by Oregon law. This communication is an extension of my initial special appearance filing that was improperly rejected by the clerk's office on September 8, 2025, for which Ms. Beck responded to.

I am writing in response to an email from Juvenile Case Processing Clerk, Juvenile Department Lead, Kimberly Beck, dated September 9, 2025, in which she asserted that my "personal appearance was required" at the September 8th shelter hearing and that my written filing did "not satisfy court requirements" without specifying what requirements were not satisfied.

I acknowledge that this written communication comes several days after Ms. Beck's initial email, however, this timing reflects my reasonable expectation that, upon my filing of a second motion which explicitly notified the court of the complete absence of personal jurisdiction due to a total lack of service of summons and petition, the court would cease further proceedings affecting my parental rights until proper jurisdiction could be established. Instead, the court has proceeded with multiple hearings - including a shelter hearing and status conference - and has stated on the record during a recent status conference that the failure to serve me with summons and petition "doesn't matter" and would not prevent the court from continuing to act violating the very tenets that vest the court with its authority.

This communication is to formally object to the assertion that it doesn't matter whether I've been served, that my physical in-court presence was required and that my filing of special appearances somehow did not meet court requirements which are legally and factually untenable. I intend to bring to your attention the profound jurisdictional and due process violations that have occurred in this matter.

JURISDICTIONAL CHALLENGE

The court's authority to proceed in a juvenile dependency case is not discretionary; it is strictly defined by statute. Under Oregon Revised Statutes Chapter 419B, jurisdiction over a parent attaches only upon the issuance and lawful service of a summons and petition. Specifically:

ORS 419B.838 mandates the requirements for proper service of a summons.
ORS 419B.815 establishes jurisdictional prerequisites, stating: "A court may make an order establishing jurisdiction under ORS 419B.100 **only** after service of summons and a true copy of the petition..."
ORS 419B.848(3) provides that "All papers requiring service, may be transmitted from any place by telegraph, facsimile or electronic mail."

I have received neither a summons nor a petition providing me with constitutionally and legislatively sufficient notice of the substance and pendency of this action. The only document provided was a "Notice of Protective Custody" pamphlet, which is not a substitute for a summons. Without proper service, the court had no authority to compel my personal presence nor to proceed with any hearings affecting my rights in any proceedings, to include, now, all the proceedings which have occurred to date.

While ORS 419B.836 provides a "saving clause" for *minor defects* in a summons, it does not excuse a *complete and total absence of service*. This statutory clause cannot cure a jurisdictional and constitutional void created by a total failure to issue and serve a summons and petition in the first instance. Furthermore, ORS 419B.839 states that a summons *may* be issued to require a parent's physical presence in court, confirming that such compulsion is not automatic and must be predicated on a validly issued and served summons. Without satisfying any of these statutory conditions precedent, the state appears to have proceeded with a juvenile dependency shelter hearing and status conference that it had no authority to conduct, both entirely without jurisdiction and with the court's acknowledgment of such a defect being made on the record in the latter of the two hearings. Meanwhile, my daughter's whereabouts have been concealed from me since before any valid court order was

entered, dating back to September 6, 2025 (going on nearly two months), and my contact with her has been restricted with absolutely no legal basis as to why.

SPECIAL APPEARANCE AND DENIAL OF ACCESS TO COURTS
In response to the clerk's claim that I 'failed to appear,' I assert that I did make a lawful special appearance to contest the tribunal's jurisdiction while upholding my parental rights. My written submission constitutes a valid form of appearance as per Oregon law when contesting jurisdiction. Unfortunately, I was barred from court as the juvenile clerk's office declined to accept my submission.

Initially, I was informed that I could not file anything; this statement later changed to indicate that any filing must occur in person. Such statements contravene juvenile dependency law and civil regulations in Oregon and are unjustifiable. No legal grounds were given for rejecting my first special appearance or for claiming that only an in-person submission or appearance would be acceptable.

According to ORS 419B.851, the juvenile clerk is mandated to accept and file submissions; this is a ministerial action, not a discretionary one. The refusal to accept my filing unlawfully obstructed my right to access the court and breached my First Amendment right to petition the government, as well as my statutory right to participate in custody-related proceedings for my child.

The clerk's initial rejection of my filing on September 8, 2025, which was based solely on ORS 419B statutes pertaining to juvenile dependency and later acceptance of a second, identical filing for tribunal consideration, illustrates that the first denial was arbitrary and discriminatory. The disparate handling of identically filed special appearances—where the first referenced only juvenile dependency statutes and the second, a motion to dismiss, was rejected solely because it did not specify those statutes—indicates that the rejection was not due to a legitimate procedural issue but rather an improper denial of my right to address fundamental jurisdictional matters.

ORS 419B.851 states:

> (5) The filing of any papers with the court must be made by filing them with the clerk of the court or the person exercising the duties of that office. The clerk or the person exercising the duties of that office shall indorse the time of day, day of the month, month and year upon the paper. The clerk or person exercising the duties of that office is not required to receive any paper for filing unless:
>
> (a) The contents of the paper are legible; and
>
> (b) All of the following are legibly indorsed on the front of the paper:
>
> (A) The name of the court;
>
> (B) The title of the cause and the paper;
>
> (C) The names of the parties; and
>
> (D) If there is one, the name of the attorney for the parties requesting filing.

My initial filing satisfied all statutory requirements and should have been accepted. The court's rejection of my second filing, solely on the basis that the Oregon Rules of Civil Procedure do not apply to the first filing— which properly referenced juvenile dependency statutes— constitutes a denial of access. This improper dismissal of a legitimate challenge to jurisdiction, coupled with an actual absence of jurisdiction, renders the subsequent proceedings invalid from the outset.

FILING REQUIREMENTS ANALYSIS

Ms. Beck's claim that my submission failed to satisfy court standards is without merit. This communication is not a request for legal advice but a demand that the juvenile dependency department and Oregon DHS comply with applicable laws and constitutional rights. I request clear legal justification for deeming my original filing insufficient. In the absence of a specific defect, the ruling of insufficiency appears arbitrary, especially since the juvenile department accepted my second submission and forwarded it to the court for consideration. Any assertion that the rejection of my second special appearance is valid under the Oregon Rules of Civil Procedure is unfounded, as my initial special appearance did not reference the ORCP but rather juvenile dependency statutes. My filing included the court's name, case title, and party names, was clear, and was submitted for the record. It met all requirements, and its rejection was unwarranted.

VOID PROCEEDINGS AND JURISDICTIONAL DEFECTS

The jurisdictional defects are exacerbated by the fact that any evidence or testimony given at the invalid September 8 and most recent status conference cannot legally support ongoing proceedings. Records of text messages indicate that DHS deemed me suitable for placement and planned to return my daughter to me on the evening of Saturday, September 6. This decision was suddenly overturned based on a contentious hearsay statement. Such evidence, presented in a jurisdictionally flawed proceeding, holds no legal validity. I was not permitted to challenge or cross-examine this evidence as the court dismissed my filing and denied my request for remote participation. This obstruction of access to the courts, coupled with the lack of jurisdiction, renders any findings or orders from that hearing void from the outset.

DOCUMENTATION

Accordingly, I formally demand that the Juvenile Department provide the following:

- Proof of service already on file, complete with the date, method/manner of service, a sworn statement from the serving individual, and the location and time of service.
- Clarification of what the court has relied on to establish that jurisdiction was properly acquired over me in the absence of a served summons or proof of service.
- All documentation (including any transcripts), evidence, or testimony presented at the void September 8 hearing, while noting my objection that such evidence cannot form a lawful basis for continued proceedings.
- Immediate written disclosure of my daughter Almira's current location and placement information, which continues to be unlawfully concealed and contact with her restricted without any lawful basis.

Please acknowledge receipt of this communication as a special appearance for the sole purpose of challenging the court's jurisdiction and as a renewal of my first filing, without consenting or acquiescing to the court's authority. Kindly ensure all filings and objections are properly accepted and docketed. Further, I respectfully request that proceedings related to the subject matter be immediately dismissed pending resolution of this jurisdictional challenge. Please confirm preservation of all records, filings, and communications related to this matter.

NOTICE OF CLAIM UNDER OREGON TORT CLAIMS ACT (ORS 30.275)
TO: Washington County, Oregon Department of Human Services and the State of Oregon
CLAIMANT: AshLe' Penn, Natural Mother of Almira Davis

Initial Violations: September 6, 2025, and ongoing
Location: Washington County Circuit Court, Juvenile Department

CIRCUMSTANCES:
Washington County employees and other state actors have violated the claimant's constitutional and statutory rights by:

Malfeasance (wrongful or unlawful act)

- The court proceeding without jurisdiction due to failure of proper summons and petition service is malfeasance by the court or state actors, because they affirmatively acted despite lacking lawful authority.
- The clerk's office rejecting proper filings and obstructing access to the court could also be construed as malfeasance, as this is an unlawful misuse of official power violating constitutional rights.

Nonfeasance (failure to act when duty exists)

- The failure to serve summons and petition as required by statute is nonfeasance—a refusal or omission to perform the duty to properly notify and provide due process.
- Concealment of my child's location and failure to provide timely information amount to nonfeasance, a refusal to act where there is a legal duty to disclose.

Misfeasance (improper or negligent performance of duty)

- The court's continuation of hearings despite knowledge of jurisdictional defects could be viewed as misfeasance—i.e., conduct that is legally authorized but performed improperly, negligently or in disregard of legal standards.
- Arbitrary rejection then acceptance of filings under inconsistent grounds may be misfeasance, indicating improper exercise of clerical or ministerial duty.

(Note: Additional claims may be pursued against other state actors for related conduct outside the court's direct purview.)

EXTENT OF INJURY:

Claimant has suffered injuries that are not only monetary but deeply personal and constitutional, encompassing harm to liberty, family integrity, and fundamental due process. All of these are recognized as compensable under Oregon's legal framework.

Economic Damages

Legal costs and expenses incurred in responding to unlawful proceedings.

Lost income or opportunity costs due to time spent addressing the litigation.

Costs of securing alternative legal representation or support services.

Noneconomic Damages

Emotional distress, anxiety, and psychological trauma caused by unlawful separation from your child.

Loss of parental companionship, care, comfort, and familial association.

Harm from deprivation of constitutional rights, such as due process, equal protection, and First Amendment rights.

Ongoing stress and uncertainty related to the concealment of the Claimant's child's location and contact restrictions.

Damages for infringement on fundamental parental rights and liberty interests protected under the U.S. and Oregon constitutions.

Constitutional and Statutory Basis

Oregon courts recognize the severity of emotional and parental relationship harm in due process and tort claims.

Recent Oregon case law has abolished caps on noneconomic damages in personal injury claims, opening the door to substantial recovery for emotional and constitutional injuries.

Claimant may also pursue punitive damages for willful or malicious violations of rights, aiming to both compensate and deter further misconduct.

AMOUNT OF DAMAGES:

To be determined, but including compensatory damages for emotional distress, loss of parental relationship, economic losses, and punitive damages for deliberate constitutional violations. This notice is provided pursuant to ORS 30.275 as a prerequisite to filing a civil action. This notice preserves all rights to seek additional damages as they become ascertainable.

RESERVATION OF RIGHTS

Additionally, despite repeated inquiries, I have not been officially informed where my daughter Al-mira is currently placed, nor have I received any documentation or order authorizing her removal or restricting my contact. This continued concealment raises grave due process concerns and interference with parental rights that is actionable under 42 U.S.C. § 1983.

Please be advised that you are hereby instructed and obligated to preserve all documentation, communications, records, transcripts, evidence, and electronically stored information (ESI) related to this matter, including but not limited to all filings, hearing records, motions, correspondence, electronic communications, and any data concerning the service of summons and petition, jurisdictional challenges, and court proceedings from the inception of this case through its resolution.

Any routine or other destruction, alteration, deletion, or disposal of such materials—whether physical or electronic—or any attempts to suppress, conceal, or withhold such evidence would constitute spoliation and may lead to sanctions, adverse inferences, or other legal consequences.

This preservation obligation extends to all relevant data stored in court, government agency records, clerk's office files, electronic mail systems, text messages, case management systems, and all backup or archived materials.

You are respectfully requested to promptly confirm receipt of this preservation notice and confirm that full preservation measures have been implemented.

In closing, I formally object, through this subsequent special appearance, to any reliance on an alleged "failure to appear." I did not waive jurisdictional objections, and I expressly appeared specially by filings improperly denied by the Juvenile Clerk. Until proper summons and service are made, and even then, this court has acted in the absence of its jurisdictional authority to have compelled any physical appearance or proceed further in issuing orders affecting my legal rights. Please ensure this

response is entered into the record. I reserve all rights and objections.
Respectfully,

/s/ AshLe' Penn Without Prejudice
Appearing Specially, Natural Mother

CERTIFICATE OF SERVICE
I hereby certify that a true and correct copy of the foregoing was served upon all parties by electronic mail on this 20th day of October, 2025.

- Washington County Trial Court Administrator - Richard Moellmer

  richard.e.moellmer@ojd.state.or.us

- Juvenile Dependency Clerk - Kimberly Beck

  kimberly.a.beck@ojd.state.or.us

- County Counsel - Courtney Duke Driesson

  CountyCounsel@washingtoncountyor.gov

- Oregon DHS Permanency Worker - David Milne

  DAVID.MILNE@odhs.oregon.gov

/s/ AshLe' Penn Without Prejudice

On Tue, Sep 9, 2025 at 3:09 PM Kimberly A. Beck <Kimberly.A.Beck@ojd.state.or.us> wrote:

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Tue, Jul 14, 2026 at 5:11 PM
To: Brittney Horsley <bhorsleycpht@gmail.com>

Forwarded Conversation
Subject: In The Matter of Al-mira Davis

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
To: <juvenileweb@washingtoncountyor.gov>

To The Juvenile Court,

I am writing to confirm the substance of our recent telephone conversation and to formally submit a filing in the above-referenced juvenile case involving my daughter.

During our call, I was informed that I am not permitted to file documents in this case and that filings must be made in person (both of which could not simultaneously be valid). I explained that I am unable to attend in person at this time. Moreover, I informed the clerk, before being prevented access to the courts through her ending the conversation, that no proper summons or signed court protective order has been issued or served on me. I attempted to inform her that I am appearing specially through my filings.

In light of this, I am submitting herewith the following filing for your review and inclusion in the case file:

Objection to Referee Jurisdiction

Motion to Participate by Written Filing

Objection to Continued Custody

Demand for Immediate Placement with Natural Mother

Under Oregon law, "any person may file a petition in the juvenile court alleging that a child named therein is within the jurisdiction of the court" (ORS 419B.809(1)). This statute establishes that the court must accept filings from natural parents regardless of physical appearance and that participation through timely written filings is permitted. Denying this right or requiring in-person filing only conflicts with the statutory right to access the court and be heard in juvenile proceedings.

Please treat this email and the attached filing as my formal special appearance and request that the Court docket and consider the matters raised herein, notwithstanding any informal restrictions communicated by the clerk's office.

Kindly confirm receipt of this filing at your earliest convenience. I reserve all rights to pursue any further necessary legal action should my lawful right to file and participate be improperly denied.

Thank you for your attention to this important matter.

Respectfully,

AshLe' Penn

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:47 PM
To: <kat_sanchez@washingtoncountyor.gov>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 3:34 PM
To: <Heather.KITTO@odhs.oregon.gov>

Ms. Kitto,

I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing. I'm communicating this with you for the record.

We will be in touch.

Regards,
AahLe' Penn

---------- Forwarded message ---------
From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
Subject: In The Matter of Al-mira Davis
To: <juvenileweb@washingtoncountyor.gov>

From: **KITTO Heather** <Heather.KITTO@odhs.oregon.gov>
Date: Mon, Sep 8, 2025 at 4:07 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>, CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>

Hello, I am including your current worker and supervisor so that you can work directly with them. I was the on call supervisor this weekend, but won't be involved with your case moving forward.

Sincerely,

Heather Kitto

ODHS CW Supervisor Beaverton

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Monday, September 8, 2025 3:34 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>
Subject: Fwd: In The Matter of Al-mira Davis

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

From: **CRAFTON Ashley L** <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Date: Mon, Sep 8, 2025 at 4:55 PM

To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>, AshLe' Penn <ashlepenn.ap3@gmail.com>, imahoney@mpdlaw.com <imahoney@mpdlaw.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ashle,

I am your assigned caseworker. I have been trying to contact you since the end of July. You were notified of court. You did not make yourself available to have any discussions with. All parents are required to show in person unless pre-approved from the judge. I am copying your attorney on this email. I am not an attorney, and she may be able to have a more in depth conversation regarding appearances and legal matters. I would like to schedule a time to discuss assessments I currently have open.

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

From: **Ireland Mahoney** <imahoney@mpdlaw.com>
Date: Mon, Sep 8, 2025 at 5:24 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Hi Ashle',

I am the attorney who was assigned to represent you in this dependency matter. I'd love to chat when you get the chance, but before I do, you must fill out the paperwork to get a court appointed attorney. I can try to get the paperwork and send it over by email for you to sign or you can ask DHS to send you the CAA paperwork.

I hope to hear from you soon.

Ireland Mahoney
5037267000

From: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Sent: Monday, September 8, 2025 4:55:38 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>; AshLe' Penn <ashlepenn.ap3@gmail.com>; Ireland Mahoney <imahoney@mpdlaw.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Tue, Sep 9, 2025 at 6:44 AM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Cc: KITTO Heather <heather.kitto@odhs.oregon.gov>, imahoney@mpdlaw.com <imahoney@mpdlaw.com>, Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ms. Crafton,

Your email dated September 8, 2025, at 4:55 PM, states you have “been trying to contact me since the end of July” and that I “did not make myself available.” Both assertions are false and misdirect blame for DHS’s failures onto me. I received no communication of any kind—call, email, text, voicemail, letter, or visit—from you or your office prior to the events of this weekend. My phone and email have not changed, remain active, and have been used successfully by others, including DHS supervisor Heather Kitto and her colleagues, who reached me promptly during this same timeframe by simply making the effort to do so.

As you know, DHS Child Welfare Manual §4, “Initial Contact With the Family” (p. 262) requires all attempted contacts with children and parents to be documented in the case file, with date, time, method, and outcome. Consistent with your own agency rules, I hereby demand a written, itemized accounting of every alleged attempt to contact me since July 2025, consistent with your claim.

Your further assertion that “all parents are required to show in person unless pre-approved from the judge” is equally unsupported. The only document I received was a “Notice of Protective Custody” pamphlet, which is neither a summons nor a petition. It contained no directive for mandatory in-person appearance.

ORS 419B.838 requires proper service of summons or notice in dependency cases, and ORS 419B.848 makes proof of service a jurisdictional prerequisite. Importantly, ORS 419B.815 establishes that “A court may make an order establishing jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition,” and mandates that a summons require personal appearance or written answer to the petition. Without proper service and proof in the record, the court

lacked jurisdiction to proceed with the shelter hearing. The “Notice of Protective Custody” I received does not meet ORS 419B.815’s statutory summons requirements as it lacked any petition or proper summons and omitted notification of personal appearance obligations.

I attempted to appear specially through a written filing to make such challenges and objections, but that filing was rejected by juvenile department staff, who initially told me I could not submit anything in the case and that, contrarily, filings could only be made in person. The juvenile code guarantees my right to participate and be heard. I was thereby denied access to the proceedings. The hearing likely proceeded in my absence, without jurisdiction, without proper notice or summons, and without my being informed of my daughter’s location.

Finally, I must address the supervisor’s message reporting that hospital staff felt I was “escalating” when I called seeking information. Those calls were made only because DHS gave me conflicting information as to whether my daughter was even at the hospital. Under those circumstances, my persistence was not “escalation” but the only means available to verify my daughter’s location and safety. Attempts to recast a parent’s urgent inquiries as misconduct are improper and retaliatory.

On these facts:

DHS has failed to comply with ORS 419B.838, ORS 419B.848, and ORS 419B.815;

DHS has not produced required documentation of contact attempts per its own Child Welfare Manual;

I was obstructed from filing and participating in violation of due process;

My child has been removed without lawful notice, jurisdiction, or disclosure of placement.

Accordingly, I demand:

A written, itemized accounting of all alleged contact attempts since July 2025;

Clarification of DHS’s official notification and appearance practices;

Immediate disclosure of my daughter’s placement and status;

Formal acknowledgment that I seek a rehearing and review due to these procedural defects and jurisdictional failures.

The removal report

The petition

Regards,
AshLe' Penn

From: **Kat Sanchez** <Kat_Sanchez@washingtoncountyor.gov>
Date: Tue, Sep 9, 2025 at 1:03 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Good afternoon,

I am not sure what your email is in regards as it was sent blank.

Please let me know if you need help being connected to the appropriate staff within the juvenile department.

Thank you,

Kat

CAUTION: This email originated from outside the County. Exercise caution when opening attachments or clicking links from unknown senders. Always follow the guidelines defined in the KnowBe4 training when opening email received from external sources. Contact the ITS Service Desk if you have any questions.

INFO: Washington County email address has changed from @co.washington.or.us to @washingtoncountyor.gov. Please update my contact information.

From: **Kimberly A. Beck** <Kimberly.A.Beck@ojd.state.or.us>
Date: Tue, Sep 9, 2025 at 3:09 PM
To: ashlepenn.ap3@gmail.com <ashlepenn.ap3@gmail.com>

Good afternoon, Ms. Penn,

Your personal appearance was required for the shelter hearing on September 8, 2025, and you failed to appear. Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements.

If you have any further concerns or wish to discuss your situation in more detail, you are welcome to contact our Trial Court Administrator, Richard Moellmer. He can be reached by phone at 503.846.8888 ext.70568 or by email richard.e.moellmer@ojd.state.or.us

Thank you,

Kimberly Beck

Juvenile Case Processing Clerk*
Juvenile Department Lead

Washington County Circuit Court

(503) 846-8888 ext. 70621
*Adoptions, Guardianships, Emancipations, Back-Up Courtroom Clerk for Judge Goldman

NOTICE: *This communication may contain privileged, confidential, or other information exempt from disclosure under applicable law. If you received it in error, please advise me by reply email and immediately delete the message and any attachments without further reviewing, copying, or disclosing the contents.*

From: JUVENILE Web <JUVENILEweb@washingtoncountyor.gov>
Sent: Tuesday, September 9, 2025 9:03 AM
To: WSH Juvenile Admin Staff <wsh.juvenile.admin.staff@ojd.state.or.us>
Subject: FW: [EXTERNAL] In The Matter of Al-mira Davis

WARNING: This email is from outside of the Oregon Judicial Department. If links or files in this email are unexpected, even if from an email address you trust, please call the sender on the phone and verify them before you click.

Forwarding on to you for possible assistance….

Thanx,

Lorena L.

x4453

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From: **CRAFTON Ashley L** <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Date: Tue, Sep 9, 2025 at 5:00 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: imahoney@mpdlaw.com <imahoney@mpdlaw.com>, Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>

Ms. Penn,

Thank you for your email. Some of your questions are regarding legal matters, please speak to your attorney regarding these.

I do need to meet with you regarding the three open calls I have and would like to schedule a time to meet with you to do that. I am available 12pm-5pm on Friday 9/12/2025, Tuesday 9/16/2025 9am-4pm, Wednesday 9/17/2025 8am-5pm or Friday 9/19/2025 9am-4pm. These times may very as things come up so please respond as soon as possible letting me know what day and time works for you.

Thank you

Ashley Crafton (Lilja) (she/her pronouns)

Social Service Specialist I

Department of Human Service

Child Welfare Programs

15425 NW Greenbrier Parkway

Beaverton, OR 97006

971-304-6851

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Monday, September 8, 2025 3:34 PM
To: KITTO Heather <Heather.KITTO@odhs.oregon.gov>
Subject: In The Matter of Al-mira Davis

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Ms. Kitto,

I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing. I'm communicating this with you for the record.

We will be in touch.

Regards,

AahLe' Penn

---------- Forwarded message ---------
From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Mon, Sep 8, 2025 at 1:44 PM
Subject: In The Matter of Al-mira Davis
To: <juvenileweb@washingtoncountyor.gov>

From: **Ireland Mahoney** <imahoney@mpdlaw.com>
Date: Thu, Sep 11, 2025 at 9:09 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Hi AshLe',

I just noticed that I had a typo in my last message to yo. Please see the correct office number in my signature below.

I noticed you haven't filled out the court appointed paperwork yet, and I am not able to work on your case until you do. However, if you have any questions about how to do that, I would be happy to help you in any way I can.

I hope to talk soon.

Best,

Ireland Mahoney (she/her) | Attorney, Juvenile Unit

Metropolitan Public Defender

400 E. Main St., Suite 210

Hillsboro, OR 97123

Office: 503-726-7900

Legal Assistant Mollie McAdams: mmcadams@mpdlaw.com.

Confidentiality: This e-mail transmission may contain confidential and/or privileged information. The information contained herein is intended for the addressee only. If you are not the addressee, please do not review, disclose, copy or distribute this transmission. If you have received this transmission in error, please contact the sender immediately.

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, Sep 12, 2025 at 3:40 AM
To: Barry Washington <barrywashington.bw@gmail.com>

Ms. Beck,

I acknowledge receipt of your email dated September 9, 2025, asserting that my "personal appearance was required" at the September 8 shelter hearing and that my written filing did "not satisfy court requirements".

Under ORS 419B.838 and ORS 419B.848, jurisdiction in a juvenile dependency proceeding attaches only upon the issuance and lawful service of a summons together with the petition upon the parties. Even the savings clause of this chapter (ORS 419B.836) does not excuse absolute absence of service, only minor defects in service which do not act to violate the due process rights of the party against whom "summons was issued". The statute establishes that only parties who would have received the petition and therefore would have knowledge of the substance and pendency of the action, as is required, would or could be compelled to present in-person.

I have received neither a summons nor a petition providing me Constitutionally and legislatively sufficient notice, yet my daughter's whereabouts have been concealed and the state appears to have proceeded with a juvenile dependency shelter hearing that it had no authority to proceed with in the absence of proper, procedurally compliant and substantive interests observant requirements. It is ORS 419B.839 which grants the tribunal the authority to compel an in-person presence, but only if necessary, by stating: "Summons may be issued requiring the appearance of any person whose presence the court deems necessary."

Notwithstanding the fact that I was not afforded constitutionally sufficient or statutorily proper service of summons and petition, I am unable to find any requirement that I would have been aware of that mandated that only a physical in-person presence would suffice.

Although I may not have appeared in person - I did, however, make a special appearance to challenge the jurisdiction of the tribunal and exercise my parental rights but was denied the ability to do so - without being provided under what authority this requirement comes from. Despite that proper notice and service of summons was never effectuated, I did attempt to appear, specially, by filing written objections challenging referee jurisdiction and objecting to the court's neglecting to ensure service was complete on the record.

Unfortunately, I was denied filing access, and thereby denied access to the court, by the juvenile clerk's office, which refused to docket my appearance by refusing to accept my filing and for which the clerk's office provided no lawful basis for prohibiting either remote or written filings in lieu of a personal appearance. In regard to the clerk's refusal to accept my filing, there is legislatively established authority supporting my position that the clerk of a court does not have the authority to deny a filing if it meets statutory requirements, as I'm confident the filing I submitted did just that.

Proceedings that move forward absent proof of service are void for lack of jurisdiction. See ORS 419B.848(3)(a) providing: "All papers requiring service, may be transmitted from any place by telegraph, facsimile or electronic mail."

Respectfully, your statement that my filings did not meet court requirements is legally unsustainable. Are you able to identify the specific defects in my filing making it unsatisfactory to be accepted and to carry out its purpose so that I might be able to correct the issue? Please don't construe this as a request for legal advice, it is not. Moreso, this is a request that I be provided with statutory authority supporting the assertion that my filings did not satisfy court requirements. Without being able to identify exactly why my filing did not "satisfy court requirements", I'd ask how my filing was determined insufficient to carry out its purpose? So, again, this is not a request for legal advice but rather a showing that public officials are acting in accordance with the law.

I believe that under ORS 419B.851, "The filing of any papers with the court must be made by filing them with the clerk of the court or the person exercising the duties of that office. The clerk or the person exercising the duties of that office shall indorse the time of day, day of the month, month and year upon the paper." So long as the filing contains: the name of the court; the title of the cause and the paper; The names of the parties; and since there is not one, the name of the attorney for the parties requesting filing should not have been required.

In observance of this statute, my filing absolutely satisfied court requirements and it would appear that a clerk's indorsement of such a filing is ministerial and not discretionary - requiring the acceptance of my filing notifying the court of my special appearance on the record. Overall, the court has proceeded in this matter lacking authority to do so. If you can provide clarity of under what authority, exactly, this matter is proceeding under - I would be grateful if you could provide it to me.

Further, I must address DHS's conduct in this matter. Initially, DHS contacted me and stated they were prepared to release Almira to me. When I sent my uncle to retrieve her (due to an outstanding warrant preventing my personal appearance), DHS refused this lawful exercise of my parental right to receive family assistance. Approximately 10 minutes later, DHS claimed they had received "new information" that Almira stated she would "kill herself" if returned to my home.

When I spoke with Almira directly about one hour later, she explicitly denied making any such statement and expressed her desire to come home. DHS immediately terminated this call and has prevented all subsequent contact between myself and my daughter. This appears to constitute fabrication of evidence to justify continued detention, followed by silencing of the witness who contradicted their claims.

DEMANDS FOR PRESERVATION OF DOCUMENTS/DOCUMENTATION

Accordingly, I now formally demand that the Juvenile Department provide:

1. Proof of service already occurred complete with the date, method/manner of service, sworn statement from the individual who served the documents as well as the location and time of service;

2. Clarification of what the court has now relied on to establish that jurisdiction has been properly acquired over me in the absence of service of summons or proof of service;
3. Documentation of the alleged "suicide threat" including the identity of the person who allegedly heard this statement, the exact time and circumstances, and any recordings or contemporaneous notes;
4. Justification for terminating my phone contact with Almira and preventing all subsequent communication;
5. Current location and placement information for Almira, which continues to be unlawfully concealed.

TORT CLAIM NOTICE

NOTICE OF CLAIM UNDER OREGON TORT CLAIMS ACT (ORS 30.275)

TO: Washington County and the State of Oregon

CLAIMANT: AshLe' Penn, Natural Mother of Almira Davis

DATE, TIME AND LOCATION:

- Initial violations: September 5, 2025 and ongoing
- Location: Washington County Circuit Court Juvenile Department

Washington County employees and other state actors have violated claimant's constitutional rights by:

1. Proceeding with court hearings without jurisdiction due to failure to serve summons and petition
2. Refusing to accept proper legal filings, denying access to courts
3. Relying on evidence presented in void proceedings to justify continued child detention
4. Violating procedural due process rights and substantive parental rights
5. Concealing child's location and placement information

(Note: Additional claims may be pursued against other state actors for related conduct outside the court's direct purview)

Rights of Action:

- Emotional distress from unlawful separation from minor child
- Loss of parental companionship and constitutional parent-child relationship
- Ongoing constitutional violations and denial of due process
- Economic losses related to legal proceedings and lost time
- punitive damages for deliberate constitutional violations

This notice is provided pursuant to ORS 30.275 as a prerequisite to filing civil action. This notice preserves all rights to seek additional damages as they become ascertainable.

RESERVATION OF RIGHTS

Additionally, despite repeated inquiries, I have not been informed where my daughter Almira is currently placed, nor have I received any documentation or order authorizing her removal or restricting my contact. This continued concealment raises grave due process concerns and interference with parental rights that is actionable under 42 U.S.C. § 1983.

I formally object to any reliance on alleged "failure to appear." I did not waive jurisdictional objections, and I expressly appeared specially by filing. Until proper summons and service are made, the court lacks authority to compel my physical appearance or proceed further.

Please ensure this response is entered into the record. I reserve all rights and objections.

Respectfully,

/s/AshLe' Penn

Natural Mother

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, Sep 12, 2025 at 3:51 AM
To: Barry Washington <barrywashington.bw@gmail.com>

Natural Mother of Almira Davis

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Thu, Sep 18, 2025 at 12:15 PM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>

> s. Crafton,
>
> Please find attached my formal response to your September 9, 2025 message. This correspondence addresses critical procedural and jurisdictional matters that require your direct response as the assigned caseworker.
>
> The attached letter outlines specific statutory obligations, documentation requirements, and factual discrepancies that must be resolved before any further meetings can be scheduled. These inquiries concern DHS's own mandatory compliance duties under Oregon law and are not requests for legal advice.
>
> I expect your written response within ten (10) business days of receipt, addressing each numbered section and subsection. The questions posed require straightforward, factual answers based on DHS policies, Oregon statutes, and the specific record of this case.

Regards
AshLe' Penn

From: **CRAFTON Ashley L** <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Date: Wed, Oct 1, 2025 at 10:40 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Giles Sean M <SEAN.M.GILES@odhs.oregon.gov>, Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Thursday, September 18, 2025 12:16 PM
To: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Subject: Re: In The Matter of Al-mira Davis

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

s. Crafton,

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Tue, Oct 14, 2025 at 9:58 AM
To: <juvenileweb@washingtoncountyor.gov>, <DAVID.MILNE@odhs.oregon.gov>

Juvenile Clerk,

The attached filings are provided for record in *In re Almira Davis, Case No. 25JU04261.* Court staff previously stated that this filing "did not meet court requirements," yet no rule, statute, or written deficiency notice was provided.

The Clerk and Court Had a Non-Discretionary Duty to File and Consider Jurisdictional Pleadings
Under **ORS 7.020** and **UTCR 2.010(6)–(7) as well as under ORS 419B**, clerks must accept and file any paper presented for filing unless the document is so defective that it cannot be identified as belonging in the case. Even then, the reason for rejection must be specified in writing. No such written basis was provided.

Moreover, jurisdictional challenges under **ORCP 21 A(1)** implicate due process and are mandatory matters for judicial—not administrative—determination. The clerk has no authority to summarily determine a pleading's sufficiency or to deny filing based on a subjective assessment of "requirements."

This notice preserves the fact and content of the filing for the official record.

Respectfully,
/s/ Ash Le' Penn

From: **Milne David** <DAVID.MILNE@odhs.oregon.gov>
Date: Wed, Oct 15, 2025 at 11:20 AM
To: ashlepenn.ap3@gmail.com <ashlepenn.ap3@gmail.com>
Cc: Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>

Hi AshLe,

Please find attached the current Safety Plan. During our phone conversation you said you had not received a copy of the Safety Plan

nor the case records you had requested.

It appears the CPS worker Ashley Crafton did in fact send you a copy of the safety Plan on 10/1/2025 and instructions on how to attain

the records regarding this case.

I am forwarding you Ashley's email to you as it appears you must have overlooked it.

Cheers Dave Milne

From: CRAFTON Ashley L <ASHLEY.L.CRAFTON@odhs.oregon.gov>
Sent: Wednesday, October 15, 2025 11:11 AM
To: Milne David <DAVID.MILNE@odhs.oregon.gov>
Subject: FW: In The Matter of Al-mira Davis

From: CRAFTON Ashley L
Sent: Wednesday, October 1, 2025 10:41 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Wed, Oct 15, 2025 at 1:02 PM
To: Milne David <DAVID.MILNE@odhs.oregon.gov>

Mr. Milne,

My daughter was taken on September 6, 2025. During a shelter hearing on September 8, 2025 your agents relayed to the court that I REFUSED a safety plan that you acknowledge was sent to me on October 1, 2025. I never said I had never received the safety plan - please stop misconstruing my words. What I said was that it is perjury to have asserted to the court that I had refused such safety plan as that would be impossible since you are aware it was sent to me nearly a month after her removal.

I'd appreciate it if you approached me with honesty and stop trying to posit that somehow I have misrepresented or misconstrued something. I'm sure you're aware - as you were notified at the start of the call that the call was recorded yesterday. And so, I never said I'd never gotten a safety plan. Again, DHS perjured themselves by telling the court during the shelter hearing that I'd refused it. Please tell me how I could have possibly refused something on 9/8/25 that wasn't presented to me until 10/1/25.

As to other matters not involving DHS' continued dishonesty and your clearly trying to perpetuate that dishonesty by telling me that I was mistaken when I was not, I've sent you an invoice and I've also asked for you to approach your central office about these very matters.

Instead of approaching me with extraneous communications about something that isn't true, is it possible you might have something of substance to posit related to that invoice or the notification to your central office?

I'll look forward to a meaningful response. And please look out for my written tort claim notice and demand.

Regards,

Ash Le' Penn

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, Oct 24, 2025 at 7:42 AM
To: <richard.e.moellmer@ojd.state.or.us>
Cc: Kimberly A. Beck <kimberly.a.beck@ojd.state.or.us>, <CountyCounsel@washingtoncountyor.gov>, Milne David <DAVID.MILNE@odhs.oregon.gov>

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10 attachments

- **In the matter of almira davi.pdf** 122K
- **crafton.pdf** 68K
- **Court Attorney Application 4.2021.pdf** 265K
- **Safety Plan - Davis.pdf** 717K
- **1536.pdf** 1608K
- **orcp21.pdf** 237K
- **mothers declaration.pdf** 274K
- **Court Attorney Application 4.2021.pdf** 265K
- **Safety Plan - Davis.pdf** 717K
- **1536.pdf** 1608K